DESIGN-BUILD MULTIPLE AWARD CONSTRUCTION CONTRACT (MACC)

PUBLIC WORKS DEPARTMENT (PWD)
MAINE AREA OF RESPONSIBILITY (AOR)

PRICE PROPOSAL
ELECTRONIC
September 23, 2021
Solicitation # N4008521R1217

Submitted to:

NAVFACSY SCOM MID-ATLANTIC
Contracting Core
9324 VIRGINIA AVENUE
NORFOLK VA 23511-3095
Attn: Brittany N. Cristelli
brittany.n.cristelli.civ@us.navy.mil

Submitted By:

Harry Brown
Miami Wiipica, LLC
250 West Park St.
Providence, Rhode Island

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Cell (609)230-4425
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DUNS: 117007074
Cage Code: 8B6Y9
EIN: 35-2652385

Table of Contents

1.0 Volume 1 – Technical.....
1.1 Standard Form 1442 and Amendments 1
1.2 Price Proposal Form 7
1.3 Bid Bond & Letter 11
1.4 SAM Registration 15
1.5 FAPIIS Certification 16
1.6 VETS-4212 Registration 17
1.7 Bank Reference Letter 18
1.8 Financial Statements 19
1.8.1 Miami Nation Enterprises 2018 Audit Report 20
1.8.2 Miami Nation Enterprises 2019 Audit Report 44
1.8.3 Miami Nation Enterprises 2020 Audit Report 69
1.9 Facilities and Equipment 95
1.10 Offerors Current Workload 96

1.0 Volume 2 – Price

1.1 Standard Form 1442 and Amendments

SOLICITATION, OFFER, AND AWARD (Construction, Alteration, or Repair)	1. SOLICITATION NO. N4008521R1217	2. TYPE OF SOLICITATION [ ] SEALED BID (IFB) [X] NEGOTIATED (RFP)	3. DATE ISSUED 02-Aug-2021	PAGE OF PAGES 1 OF 59

IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.

4. CONTRACT NO.	5. REQUISITION/PURCHASE REQUEST NO.	6. PROJECT NO.

7. ISSUED BY CODE N40085	8. ADDRESS OFFER TO (If Other Than Item 7) CODE
NAVFACSYSCOM MID-ATLANTIC CONTRACTING CORE 9324 VIRGINIA AVENUE NORFOLK VA 23511-3095 TEL: FAX:	**See Item 7** TEL: FAX:

9. FOR INFORMATION CALL:	A. NAME	B. TELEPHONE NO. (Include area code) (NO COLLECT CALLS)
	BRITTANY N. CRISTELLI	757-341-1978

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS (Title, identifying no., date):

DESIGN-BUILD (DB) /DESIGN-BID-BUILD (DBB), INDEFINITE DELIVERY, INDEFINITE QUANTITY (IDIQ), MULTIPLE AWARD CONSTRUCTION CONTRACT (MACC) FOR PUBLIC WORKS DEPARTMENT (PWD) MAINE

This procurement is solicited as an 8(a) set-aside.

OFFERORS MUST BE 8(a) FIRMS SERVICED BY THE SBA, MAINE DISTRICT OFFICE IN THE STATE OF MAINE OR WITHIN A 350-MILE RADIUS OF KITTERY, MAINE, 03854. OFFERORS ARE REQUIRED TO SUBMIT THEIR CERTIFICATE OF EXISTENCE/CERTIFICATE OF AUTHORITY OR THE BONAFIDE OFFICE APPROVAL LETTER WITH THEIR PROPOSAL SUBMISSION WITH REFERENCE TO SBA REQUIREMENT NUMBER SI1615324761M. (INSERT AS AN ATTACHMENT TO THE TECHNICAL PROPOSAL).

** All correspondence regarding this solicitation shall be directed via email to Brittany Cristelli at brittany.n.cristelli.civ@us.navy.mil **

11. The Contractor shall begin performance within 15 calendar days and complete it within _____ calendar days after receiving [X] award, [ ] notice to proceed. This performance period is [X] mandatory, [ ] negotiable. (See 52.211.10 .)

12 A. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? (If "YES," indicate within how many calendar days after award in Item 12B.)	12B. CALENDAR DAYS
[X] YES [ ] NO	15

13. ADDITIONAL SOLICITATION REQUIREMENTS:

A. Sealed offers in original and 1 copies to perform the work required are due at the place specified in Item 8 by 02:00 PM (hour) local time 31 Aug 2021 (date). If this is a sealed bid solicitation, offers must be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

B. An offer guarantee [X] is, [ ] is not required.

C. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

D. Offers providing less than 120 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

SOLICITATION, OFFER, AND AWARD (Continued)

(Construction, Alteration, or Repair)

OFFER ***(Must be fully completed by offeror)***

14. NAME AND ADDRESS OF OFFEROR *(Include ZIP Code)*	15. TELEPHONE NO. *(Include area code)*
Miami Wiipica, LLC 250 West Park Street, Suite 100 Providence, RI 02908	16. REMITTANCE ADDRESS *(Include only if different than Item 14)* **See Item 14**
CODE 8B6Y9 / FACILITY CODE	

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. *(Insert any number equal to or greater than the minimum requirements stated in Item 13D. Failure to insert any number means the offeror accepts the minimum in Item 13D.)*

AMOUNTS	SEE SCHEDULE OF PRICES

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NO.	0001	0002	0003							
DATE	08/20/21	09/09/21	09/17/21							

20A. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER *Harry Brown, Jr., General Manager*	20B. SIGNATURE	20C. OFFER DATE 09/23/21

AWARD ***(To be completed by Government)***

21. ITEMS ACCEPTED:

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA

24. SUBMIT INVOICES TO ADDRESS SHOWN IN *(4 copies unless otherwise specified)*	**ITEM**	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO ☐ 10 U.S.C. 2304(c) ☐ 41 U.S.C. 253(c)
26. ADMINISTERED BY CODE		27. PAYMENT WILL BE MADE BY: CODE

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT *(Contractor is required to sign this document and return _____ copies to issuing office.)* Contractor agrees to furnish and deliver all items or perform all work, requisitions identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications or incorporated by reference in or attached to this contract.

☐ 29. AWARD *(Contractor is not required to sign this document.)* Your offer on this solicitation, is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.

30A. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN *(Type or print)*		31A. NAME OF CONTRACTING OFFICER *(Type or print)* TEL: EMAIL:
30B. SIGNATURE	30C. DATE	31B. UNITED STATES OF AMERICA BY / 31C. AWARD DATE

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	PWD MAINE MACC FFP DESIGN-BUILD/DESIGN-BID-BUILD, INDEFINITE DELIVERY, INDEFINITE QUANTITY, MULTIPLE AWARD CONSTRUCTION CONTRACT FOR PUBLIC WORKS DEPARTMENT MAINE FOB: Destination				
				NET AMT	

DELIVERY INFORMATION

CLIN	DELIVERY DATE	QUANTITY	SHIP TO ADDRESS	DODAAC / CAGE
0001	N/A	N/A	N/A	N/A

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT

1. CONTRACT ID CODE	PAGE OF PAGES	
J	1	3

2. AMENDMENT/MODIFICATION NO.	3. EFFECTIVE DATE	4. REQUISITION/PURCHASE REQ. NO.	5. PROJECT NO.(If applicable)
0001	20-Aug-2021		

6. ISSUED BY CODE N40085

NAVFACSYSCOM MID-ATLANTIC
CONTRACTING CORE
9324 VIRGINIA AVENUE
NORFOLK VA 23511-3095

7. ADMINISTERED BY (If other than item 6) CODE

See Item 6

8. NAME AND ADDRESS OF CONTRACTOR (No., Street, County, State and Zip Code)

Miami Wiipica, LLC
250 West Park Street, Suite 100
Providence, RI 02908

CODE 8B6Y9 FACILITY CODE

X	9A. AMENDMENT OF SOLICITATION NO. N4008521R1217
X	9B. DATED (SEE ITEM 11) 02-Aug-2021
	10A. MOD. OF CONTRACT/ORDER NO.
	10B. DATED (SEE ITEM 13)

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

[X] The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offer [X] is extended, [ ] is not extended.

Offer must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended by one of the following methods: (a) By completing Items 8 and 15, and returning _____ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or telegram which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by telegram or letter, provided each telegram or letter makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required)

13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS.
IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.

[ ] A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.

[ ] B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation date, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(B).

[ ] C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:

[ ] D. OTHER (Specify type of modification and authority)

E. IMPORTANT: Contractor [ ] is not, [ ] is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)

SOLICITATION NO. N40085-21-R-1217 - DESIGN-BUILD (DB) /DESIGN-BID-BUILD (DBB), INDEFINITE DELIVERY, INDEFINITE QUANTITY (IDIQ), MULTIPLE AWARD CONSTRUCTION CONTRACT (MACC) FOR PUBLIC WORKS DEPARTMENT (PWD) MAINE

The purpose of this amendment is to provide Site Visit details and updated Attachment 3 - Technical Specifications and Attachment 4 - Submittal Register.

The proposal due date has been extended to 16 September 2021 NLT 2:00 P.M EST.

See Continuation Page(s).

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER (Type or print)		16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)	
Harry Brown, Jr., General Manager		TEL: EMAIL:	
15B. CONTRACTOR/OFFEROR Harry Brown (Signature of person authorized to sign)	15C. DATE SIGNED 09/23/21	16B. UNITED STATES OF AMERICA BY (Signature of Contracting Officer)	16C. DATE SIGNED 20-Aug-2021

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT

1. CONTRACT ID CODE	PAGE OF PAGES	
J	1	21

2. AMENDMENT/MODIFICATION NO.	3. EFFECTIVE DATE	4. REQUISITION/PURCHASE REQ. NO.	5. PROJECT NO.(If applicable)
0002	09-Sep-2021		

6. ISSUED BY CODE N40085

NAVFACSYSCOM MID-ATLANTIC
CONTRACTING CORE
9324 VIRGINIA AVENUE
NORFOLK VA 23511-3095

7. ADMINISTERED BY (If other than item 6) CODE

See Item 6

8. NAME AND ADDRESS OF CONTRACTOR (No., Street, County, State and Zip Code)

Miami Wiipica, LLC
250 West Park Street, Suite 100
Providence, RI 02908

CODE 8B6Y9 FACILITY CODE

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X	9B. DATED (SEE ITEM 11) 02-Aug-2021
	10A. MOD. OF CONTRACT/ORDER NO.
	10B. DATED (SEE ITEM 13)

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The purpose of this amendment is to provide responses to Pre-Proposal Inquiries and extend the proposal due date.

The proposal due date has been extended to 23 September 2021 NLT 2:00 P.M. EST.

See Continuation Page(s).

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER (Type or print)		16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)	
Harry Brown, Jr., General Manager		TEL: EMAIL:	
15B. CONTRACTOR/OFFEROR (Signature of person authorized to sign)	15C. DATE SIGNED 09/23/21	16B. UNITED STATES OF AMERICA BY (Signature of Contracting Officer)	16C. DATE SIGNED 09-Sep-2021

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT

1. CONTRACT ID CODE	PAGE OF PAGES	
J	1	15

2. AMENDMENT/MODIFICATION NO.	3. EFFECTIVE DATE	4. REQUISITION/PURCHASE REQ. NO.	5. PROJECT NO.(If applicable)
0003	17-Sep-2021		

6. ISSUED BY CODE N40085

NAVFACSYSCOM MID-ATLANTIC
CONTRACTING CORE
9324 VIRGINIA AVENUE
NORFOLK VA 23511-3095

7. ADMINISTERED BY (If other than item 6) CODE

See Item 6

8. NAME AND ADDRESS OF CONTRACTOR (No., Street, County, State and Zip Code)

Miami Wiipica, LLC
250 West Park Street, Suite 100
Providence, RI 02908

CODE 8B6Y9 FACILITY CODE

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[ ] D. OTHER (Specify type of modification and authority)

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SOLICITATION NO. N40085-21-R-1217 - DESIGN-BUILD (DB) /DESIGN-BID-BUILD (DBB), INDEFINITE DELIVERY, INDEFINITE QUANTITY (IDIQ), MULTIPLE AWARD CONSTRUCTION CONTRACT (MACC) FOR PUBLIC WORKS DEPARTMENT (PWD) MAINE

The purpose of this amendment is to provide responses to Pre-Proposal Inquiries, an updated scope of work and an updated Price Proposal Form.

The proposal due date of 23 September 2021 NLT 2:00 P.M. EST remains unchanged.

See Continuation Page(s).

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER (Type or print)		16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)	
Harry Brown, Jr., General Manager		TEL: EMAIL:	
15B. CONTRACTOR/OFFEROR	15C. DATE SIGNED	16B. UNITED STATES OF AMERICA	16C. DATE SIGNED
(Signature of person)	09/23/21	BY (Signature of Contracting Officer)	17-Sep-2021

1.2 Price Proposal Form

PRICE PROPOSAL FORM – ATTACHMENT F
Revision 1 - 9/17/21

PART 1 GENERAL

1.1 CONTRACT LINE ITEM NUMBERS

1.1.1 General Notes

1. This contract will be awarded as one lump sum with unit prices required for specifically selected work.
2. See Scope of Work for detailed item descriptions.

CLIN 0001 – BASE PRICE: CLIN 0001 will consist of a repair of the bulk storage tanks (A-101 and A-102) located at B72, including: hazardous material removal; removing insulation; removing and replacing the coatings and finish; repairing two stairs; repairing tank chime; replacing all tank components; repairing and restoring fuel tank containment; and install NFPA required stickers. CLIN 001 shall be the total amount for the Base Price complete and in accordance with the drawings and specifications.

CLIN 0001AA – Insulation Removal: Price for hazardous material removal and removing insulation, complete and in accordance with the drawings and specifications, but excluding work described in CLIN(s) 0001AB, 0001AC, 0001AD, 0001AE, 0001AF, 0002, 0003, and 0004.

PRICE FOR ITEM 0001AA: **$** 904,918.15

CLIN 0001AB – Abrasive Blasting: Price for removing the existing tank coatings and finish complete and in accordance with the drawings and specifications, but excluding work described in CLIN(s) 0001AA, 0001AC, 0001AD, 0001AE, 0001AF, 0002, 0003, and 0004.

PRICE FOR ITEM 0001AB: **$** 1,508,196.92

CLIN 0001AC – Fuel Tank Coating: Price for replacing the coatings and finish and repairing two stairs complete and in accordance with the drawings and specifications, but excluding work described in CLIN(s) 0001AA, 0001AB, 0001AD, 0001AE, 0001AF, 0002, 0003, and 0004.

PRICE FOR ITEM 0001AC: **$** 603,278.78

CLIN 0001AD – Fuel Tank Chime Repair: Price for repairing tank chime complete and in accordance with the drawings and specifications, but excluding work described in CLIN(s) 0001AA, 0001AB, 0001AC, 0001AE, 0001AF, 0002, 0003, and 0004..

PRICE FOR ITEM 0001AD: **$** 405,187.23

CLIN 0001AE – Fuel Tank Components: Price for replacing all tank components and installing NFPA required stickers complete and in accordance with the drawings and specifications, but excluding work described in CLIN(s) 0001AA, 0001AB, 0001AC, 0001AD, 0001AF, 0002, 0003, and 0004

PRICE FOR ITEM 0001AE: **$** 641,546.45

CLIN 0001AF – Concrete/Containment Repair: Price for concrete/containment repair in accordance with the drawings and specifications, but excluding work described in CLIN(s) 0001AA, 0001AB, 0001AC, 0001AD, 0001AE, 0002, 0003, and 0004

PRICE FOR ITEM 0001AF: $ 596,525.65

TOTAL PRICE FOR CLIN 0001: $ 4,659,653.17

CLIN 0002 - OPTION 1, Fuel Oil Pump Skid: CLIN 0002 shall be the total amount for Option 1, Fuel Oil Pump Skid, complete and in accordance with the drawings and specifications, but excluding work described in CLIN(s) 0001, 0003, and 0004.

TOTAL PRICE FOR CLIN 0002: $ 230,555.09

CLIN 0003 - OPTION 2, Fuel Oil Water Separator: CLIN 0003 shall be the total amount for Option 2, Fuel Oil Water Separator, complete and in accordance with the drawings and specifications, but excluding work described in CLIN(s) 0001, 0002, and 0004.

TOTAL PRICE FOR CLIN 0003: $ 37,723.36

CLIN 0004 – OPTION 3, NAVFAC Logo: CLIN 0004 shall be the total amount for Option 3, NAVFAC Logo, complete and in accordance with the drawings and specifications, but excluding work described in CLIN(s) 0001, 0002, and 0003.

TOTAL PRICE FOR CLIN 0004: $ 66,735.94

GRAND TOTAL PRICE FOR ALL CLINs 0001 THROUGH 0004: $ 4,994,667.56

1.2 CONTRACT LINE ITEM NOTES

a. Submit offers using this Price Proposal Form and these Contract Line Item Notes.

b. Except when it is determined in accordance with FAR 17.206 (b) not to be in the Government's best interest, the Government will evaluate offers for award purposes by adding the total price for the options (CLINs 0002 through 0004) to the total price for CLIN 0001. In accordance with FAR 52.217-5, evaluation of options will not obligate the Government to exercise the option(s).

c. For CLINs 0002 through 0004, enter unit price and extended total in spaces provided. If there is a difference between the unit price and the extended total, the unit price will be held to be the intended price and the total recomputed accordingly. If an offeror provides a total but fails to enter a unit price, the total divided by the specified quantity will be held to be the intended unit price.

d. A firm-fixed proposed price is required for all CLINs. No provision is made for economic price adjustment.

e. The Government reserves the unilateral right to award CLIN 0002 to the Contractor at the proposed price within One Hundred (100) calendar days after contract award. If awarded the period of performance will be increased by ninety (150) additional calendar days

f. The Government reserves the unilateral right to award CLIN 0003 to the Contractor at the proposed price within One Hundred (100) calendar days after contract award. If awarded the period of performance will be increased by sixty (120) additional calendar days

g. The Government reserves the unilateral right to award CLIN 0004 to the Contractor at the proposed price within One Hundred (100) calendar days after contract award. If awarded the period of performance will be *not* be increased.

h. The Government may reject an offer as nonresponsive if it is materially unbalanced as to prices for the basic requirement and the option quantities. An offer is unbalanced when it is based on prices significantly less than cost for some work and prices which are significantly overstated for other work.

i. If any of the CLINs 0002-0004 are exercised, additional bonding and consent of surety is required. Consequently, the Performance Bond must reflect 100 percent of the aggregate amount of all CLINs.

PART 2 PRODUCTS

Not used.

PART 3 EXECUTION

Not used.

-- End of Document --

1.3 Bid Guarantee

BID BOND (See instructions on reverse)	DATE BOND EXECUTED (Must not be later than bid opening date) 9/23/2021	OMB Control Number: 9000-0045 Expiration Date: 8/31/2022

Paperwork Reduction Act Statement - This information collection meets the requirements of 44 USC § 3507, as amended by section 2 of the Paperwork Reduction Act of 1995. You do not need to answer these questions unless we display a valid Office of Management and Budget (OMB) control number. The OMB control number for this collection is 9000-0045. We estimate that it will take 1 hour to read the instructions, gather the facts, and answer the questions. Send only comments relating to our time estimate, including suggestions for reducing this burden, or any other aspects of this collection of information to: General Services Administration, Regulatory Secretariat Division (M1V1CB), 1800 F Street, NW, Washington, DC 20405.

PRINCIPAL (Legal name and business address)
MIAMI WIIPICA, LLC
1950 Roland Clarke Place, Suite 210B
Reston, VA 20191

TYPE OF ORGANIZATION ("X" one)
☐ INDIVIDUAL ☐ PARTNERSHIP ☐ JOINT VENTURE
☐ CORPORATION ☒ OTHER (Specify) LLC

STATE OF INCORPORATION
VA

SURETY(IES) (Name and business address)
Hartford Fire Insurance Company
One Hartford Plaza
Hartford, CT 06155-0001

PENAL SUM OF BOND					BID IDENTIFICATION	
PERCENT OF BID PRICE	AMOUNT NOT TO EXCEED				BID DATE 9/23/2021	INVITATION NUMBER N4008521R1217
	MILLION(S)	THOUSAND(S)	HUNDRED(S)	CENTS		
20.00%	----------	----------	----------	-------	FOR (Construction, Supplies or Services)	CONSTRUCTION

OBLIGATION:

We, the Principal and Surety(ies) are firmly bound to the United States of America (hereinafter called the Government) in the above penal sum. For payment of the penal sum, we bind ourselves, our heirs, executors, administrators, and successors, jointly and severally. However, where the Sureties are corporations acting as co-sureties, we, the Sureties, bind ourselves in such sum "jointly and severally" as well as "severally" only for the purpose of allowing a joint action or actions against any or all of us. For all other purposes, each Surety binds itself, jointly and severally with the Principal, for the payment of the sum shown opposite the name of the Surety. If no limit of liability is indicated, the limit of liability is the full amount of the penal sum.

CONDITIONS:

The Principal has submitted the bid identified above.

THEREFORE:

The above obligation is void if the Principal - (a) upon acceptance by the Government of the bid identified above, within the period specified therein for acceptance (sixty (60) days if no period is specified), executes the further contractual documents and gives the bond(s) required by the terms of the bid as accepted within the lime specified (ten (10) days if no period is specified) after receipt of the forms by the principal; or (b) in the event of failure to execute such further contractual documents and give such bonds, pays the Government for any cost of procuring the work which exceeds the amount of the bid.

Each Surety executing this instrument agrees that its obligation is not impaired by any extension(s) of the time for acceptance of the bid that the Principal may grant to the Government. Notice to the surety(ies) of extension(s) is waived. However, waiver of the notice applies only to extensions aggregating not more than sixty (60) calendar days in addition to the period originally allowed for acceptance of the bid.

WITNESS:

The Principal and Surety(ies) executed this bid bond and affixed their seals on the above date.

MIAMI WIIPICA, LLC — PRINCIPAL

SIGNATURE(S)	1. (Seal)	2. (Seal)	3. (Seal)
NAME(S) & TITLE(S) (Typed)	1. HARRY BROWN JR. GENERAL MANAGER.	2.	3.

Corporate Seal

INDIVIDUAL SURETY(IES)

SIGNATURE(S)	1. (Seal)	2. (Seal)
NAME(S) (Typed)	1.	2.

CORPORATE SURETY(IES)

SURETY A	NAME & ADDRESS	Hartford Fire Insurance Company, One Hartford Plaza, Hartford, CT 06155-0001	STATE OF INCORPORATION: CT	LIABILITY LIMIT ($): $1,124,726,000.00
	SIGNATURE(S)	1.	2.	Corporate Seal
	NAME(S) & TITLE(S) (Typed)	1. Debra Stewart, Attorney-in-fact	2.	

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Previous edition is NOT usable

STANDARD FORM 24 (REV. 8/2016)
Prescribed by GSA - FAR (48 CFR) 53.228(a)

SURETY B	NAME & ADDRESS		STATE OF INCORPORATION	LIABILITY LIMIT ($)	Corporate Seal
	SIGNATURE(S)	1.	2.		
	NAME(S) & TITLE(S) *(Typed)*	1.	2.		
SURETY C	NAME & ADDRESS		STATE OF INCORPORATION	LIABILITY LIMIT ($)	Corporate Seal
	SIGNATURE(S)	1.	2.		
	NAME(S) & TITLE(S) *(Typed)*	1.	2.		
SURETY D	NAME & ADDRESS		STATE OF INCORPORATION	LIABILITY LIMIT ($)	Corporate Seal
	SIGNATURE(S)	1.	2.		
	NAME(S) & TITLE(S) *(Typed)*	1.	2.		
SURETY E	NAME & ADDRESS		STATE OF INCORPORATION	LIABILITY LIMIT ($)	Corporate Seal
	SIGNATURE(S)	1.	2.		
	NAME(S) & TITLE(S) *(Typed)*	1.	2.		
SURETY F	NAME & ADDRESS		STATE OF INCORPORATION	LIABILITY LIMIT ($)	Corporate Seal
	SIGNATURE(S)	1.	2.		
	NAME(S) & TITLE(S) *(Typed)*	1.	2.		
SURETY G	NAME & ADDRESS		STATE OF INCORPORATION	LIABILITY LIMIT ($)	Corporate Seal
	SIGNATURE(S)	1.	2.		
	NAME(S) & TITLE(S) *(Typed)*	1.	2.		

INSTRUCTIONS

1. This form is authorized for use when a bid guaranty is required. Any deviation from this form will require the written approval of the Administrator of General Services.

2. Insert the full legal name and business address of the Principal in the space designated "Principal" on the face of the form. An authorized person shall sign the bond. Any person signing in a representative capacity (e.g., an attorney-in-fact) must furnish evidence of authority if that representative is not a member of the firm, partnership, or joint venture, or an officer of the corporation involved.

3. The bond may express penal sum as a percentage of the bid price. In these cases, the bond may state a maximum dollar limitation (e.g., 20% of the bid price but the amount not to exceed _____ dollars).

4. (a) Corporations executing the bond as sureties must appear on the Department of the Treasury's list of approved sureties and must act within the limitations listed therein. The value put into the LIABILITY LIMIT block is the penal sum (i.e., the face value) of the bond, unless a co-surety arrangement is proposed.

(b) When multiple corporate sureties are involved, their names and addresses shall appear in the spaces (Surety A, Surety B, etc.) headed "CORPORATE SURETY(IES)." In the space designated "SURETY(IES)" on the face of the form, insert only the letter identifier corresponding to each of the sureties. Moreover, when co-surety arrangements exist, the parties may allocate their respective limitations of liability under the bond, provided that the sum total of their liability equals 100% of the bond penal sum.

(c) When individual sureties are involved, a completed Affidavit of Individual Surety (Standard Form 28) for each individual surety, shall accompany the bond. The Government may require the surety to furnish additional substantiating information concerning its financial capability.

5. Corporations executing the bond shall affix their corporate seals. Individuals shall execute the bond opposite the word "Corporate Seal"; and shall affix an adhesive seal if executed in Maine, New Hampshire, or any other jurisdiction requiring adhesive seals.

6. Type the name and title of each person signing this bond in the space provided.

7. In its application to negotiated contracts, the terms "bid" and "bidder" shall include "proposal" and "offeror."

POWER OF ATTORNEY

Direct Inquiries/Claims to:
THE HARTFORD
BOND, T-11
One Hartford Plaza
Hartford, Connecticut 06155
Bond.Claims@thehartford.com
call: **888-266-3488** *or fax:* **860-757-5835**

KNOW ALL PERSONS BY THESE PRESENTS THAT:

Agency Name: ASSUREDPARTNERS OF MARYLAND LLC
Agency Code: 14-732579

- [X] **Hartford Fire Insurance Company**, a corporation duly organized under the laws of the State of Connecticut
- [X] **Hartford Casualty Insurance Company**, a corporation duly organized under the laws of the State of Indiana
- [X] **Hartford Accident and Indemnity Company**, a corporation duly organized under the laws of the State of Connecticut
- [ ] **Hartford Underwriters Insurance Company**, a corporation duly organized under the laws of the State of Connecticut
- [ ] **Twin City Fire Insurance Company**, a corporation duly organized under the laws of the State of Indiana
- [ ] **Hartford Insurance Company of Illinois**, a corporation duly organized under the laws of the State of Illinois
- [ ] **Hartford Insurance Company of the Midwest**, a corporation duly organized under the laws of the State of Indiana
- [ ] **Hartford Insurance Company of the Southeast**, a corporation duly organized under the laws of the State of Florida

having their home office in Hartford, Connecticut, (hereinafter collectively referred to as the "Companies") do hereby make, constitute and appoint, ***up to the amount of*** Unlimited :

Belinda Ferciot, Reggie Jarvis, Courtney Cothran Seed, Michael E. Schendel, Debra Stewart of MILLERSVILLE, Maryland

their true and lawful Attorney(s)-in-Fact, each in their separate capacity if more than one is named above, to sign its name as surety(ies) only as delineated above by ☒, and to execute, seal and acknowledge any and all bonds, undertakings, contracts and other written instruments in the nature thereof, on behalf of the Companies in their business of guaranteeing the fidelity of persons, guaranteeing the performance of contracts and executing or guaranteeing bonds and undertakings required or permitted in any actions or proceedings allowed by law.

In Witness Whereof, and as authorized by a Resolution of the Board of Directors of the Companies on May 23, 2016 the Companies have caused these presents to be signed by its Assistant Vice President and its corporate seals to be hereto affixed, duly attested by its Assistant Secretary. Further, pursuant to Resolution of the Board of Directors of the Companies, the Companies hereby unambiguously affirm that they are and will be bound by any mechanically applied signatures applied to this Power of Attorney.

Shelby Wiggins, Assistant Secretary

Joelle L. LaPierre, Assistant Vice President

STATE OF FLORIDA
COUNTY OF SEMINOLE } ss. Lake Mary

On this 20th day of May, 2021, before me personally came Joelle LaPierre, to me known, who being by me duly sworn, did depose and say: that (s)he resides in Seminole County, State of Florida; that (s)he is the Assistant Vice President of the Companies, the corporations described in and which executed the above instrument; that (s)he knows the seals of the said corporations; that the seals affixed to the said instrument are such corporate seals; that they were so affixed by authority of the Boards of Directors of said corporations and that (s)he signed his/her name thereto by like authority.

Jessica Ciccone
My Commission HH 122280
Expires June 20, 2025

I, the undersigned, Assistant Vice President of the Companies, DO HEREBY CERTIFY that the above and foregoing is a true and correct copy of the Power of Attorney executed by said Companies, which is still in full force effective as of September 23, 2021.

Signed and sealed in Lake Mary, Florida.

Keith D. Dozois, Assistant Vice President

POWER OF ATTORNEY

Direct Inquiries/Claims to:
THE HARTFORD
BOND, T-11
One Hartford Plaza
Hartford, Connecticut 06155
Bond.Claims@thehartford.com
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Shelby Wiggins, Assistant Secretary

Joelle L. LaPierre, Assistant Vice President

STATE OF FLORIDA
COUNTY OF SEMINOLE } **SS.** Lake Mary

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Jessica Ciccone
My Commission HH 122280
Expires June 20, 2025

I, the undersigned, Assistant Vice President of the Companies, DO HEREBY CERTIFY that the above and foregoing is a true and correct copy of the Power of Attorney executed by said Companies, which is still in full force effective as of August 4, 2021.

Signed and sealed in Lake Mary, Florida.

Keith D. Dozois, Assistant Vice President

POWER OF ATTORNEY

Direct Inquiries/Claims to:
THE HARTFORD
BOND, T-11
One Hartford Plaza
Hartford, Connecticut 06155
Bond.Claims@thehartford.com
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their true and lawful Attorney(s)-in-Fact, each in their separate capacity if more than one is named above, to sign its name as surety(ies) only as delineated above by ☒, and to execute, seal and acknowledge any and all bonds, undertakings, contracts and other written instruments in the nature thereof, on behalf of the Companies in their business of guaranteeing the fidelity of persons, guaranteeing the performance of contracts and executing or guaranteeing bonds and undertakings required or permitted in any actions or proceedings allowed by law.

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Shelby Wiggins, Assistant Secretary

Joelle L. LaPierre, Assistant Vice President

STATE OF FLORIDA
COUNTY OF SEMINOLE } ss. Lake Mary

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Jessica Ciccone
My Commission HH 122280
Expires June 20, 2025

I, the undersigned, Assistant Vice President of the Companies, DO HEREBY CERTIFY that the above and foregoing is a true and correct copy of the Power of Attorney executed by said Companies, which is still in full force effective as of September 21, 2021.

Signed and sealed in Lake Mary, Florida.

Keith D. Dozois, Assistant Vice President

THE HARTFORD

September 21, 2021

RE: Miami Wiipica, LLC

To Whom It May Concern:

Miami Wiipica, LLC is a highly regarded and valued client of the Hartford Fire Insurance Company. Hartford Fire Insurance Company has expressed to them their willingness to provide bonding to support individual projects in the amount of $30,000,000 single with an aggregate of $100,000,000 with $68,000,000 available in bonding capacity.

In accordance with normal practice, Hartford Fire Insurance Company's willingness to extend suretyship will be based on their underwriting of the account at the time the bonds are requested.

In addition, we would expect that any execution of any final bonds would be subject to review of the contract documents by the Hartford Fire Insurance Company as well as satisfactory evidence of financing for the project. Please note this letter is not to be construed as an approval for any project but is offered as an indication of support.

If we can provide any further assistance, please do not hesitate to call upon us.

This letter will be valid for a period of ninety (90) days from the date of this letter.

Sincerely,
Hartford Fire Insurance Company

Michael E. Schendel, Attorney-in-fact
240-461-3137 Cell
301-725-1855 ext 205 Office

1.4 SAM Registration

Miami Wiipica, LLC ensures registration on the SAM.gov site with CAGE Code 8B6Y9 and DUNS No. 117007074. This registration includes complete and updated Annual Representations and Certifications for the N4008521R0078 procurement, as required by Section 0600 in the Request for Proposal.

1.5 FAPIIS Certification

Home | Data Reports | Help | Policy | Search FAPIIS Site

Back

Search Results

Entity: MIAMI WIIPICA, LLC
Unique Entity ID (DUNS): 117007074
Unique Entity ID (SAM): LVQCMPXYEG79
CAGE: 8B6Y9
Date FAPIIS search conducted: 07/12/2021 15:21:31

View Corporate Relationships

FAPIIS Data	Records	Count
Administrative Agreement	No	0
Defective Pricing	No	0
DoD Determination of Contractor Fault	No	0
Information on Trafficking in Persons	No	0
Non-Responsibility Determination	No	0
Recipient Not-Qualified Determination	No	0
Subcontractor Payment Issues	No	0
Termination for Cause	No	0
Termination for Default	No	0
Termination for Material Failure to Comply	No	0

Proceedings Information as Entered by the Entity in SAM.gov

*** No Entity Management section of SAM records were found for Unique Entity ID (DUNS) 117007074.

SAM Exclusion Data

*** No matching Performance Information section of SAM records were found based on the search criteria information we have. You may want to search the Performance Information section of SAM directly at https://www.sam.gov and use the 'Advanced Search' option to locate the entity of interest.

Print

Accessibility/Section 508

1.6 VETS-4212 Registration

Miami Wiipica, LLC ensures that a current VETS-4212 has been submitted to the Department of Labor (DOL) website and received the email below in confirmation

VETS-4212 User Registration Request Completed

V

VETS4212@dol.gov
Fri 5/28/2021 5:36 PM

To:

- Harry Brown

CAUTION: This email originated from outside your organization. Exercise caution when opening attachments or clicking links, especially from unknown senders.

Henry Brown

Thank you for registering with the VETS-4212 application.

Your account request with Miami Wiipica LLC is completed.

If you have any questions or concerns in regard to this notification, please contact the VETS-4212 Service Desk at VETS4212@dol.gov or 1-866-237-0275.

Please do not respond to this email directly as any responses go to an unmonitored accoury Brown Jr., PMP/LEED-AP

1.7 Bank Reference Letter

WELCH STATE BANK

Member FDIC | Equal Housing Lender

July 12, 2021

To Whom It May Concern:

In Reference to:
Miami Wiipica, LLC
1950 Roland Clarke Place, Suite 210
Reston, VA 20191

Welch State Bank
Point-of-Contact: Jay Victor, SVP
Telephone Number: 918-544-9100
Fax Number: 918-544-9101
Email Address: jvictor@welchstatebank.com

Miami Wiipica, LLC has no lines of credit and no open letters of credit with Welch State Bank. They maintain an account with a balance in the lower seven figures. It was opened on 8/6/2019. There have been no returns or insufficient items.

Of special note, Miami Wiipica, LLC is owned by Miami Nation Enterprises (MNE), which has substantial deposit relationships with this institution. Their deposit accounts date back to 2005. All accounts have been managed in a professional manner.

Sincerely,

Jay Victor
Senior Vice President

2227 E Steve Owens Blvd | PO Box 1618
Miami, OK 74354

welchstatebank.com
Equal Housing Lender | MLO# 322675

Phone 918.544.9100
Fax 918.544.9101

1.8 Financial Statements

1.8.1 Miami Nation Enterprises 2018 Audit Report

See Attachment 1 – 2018 Audit Report

1.8.2 Miami Nation Enterprises 2019 Audit Report

See Attachment 2 – 2019 Audit Report

1.8.3 Miami Nation Enterprises 2020 Audit Report

See Attachment 3 – 2019 Audit Report

THE WHITLOCK CO.

CPAs and Consultants

MIAMI NATION ENTERPRISES

CONSOLIDATED FINANCIAL STATEMENTS
with
INDEPENDENT AUDITOR'S REPORT

YEAR ENDED DECEMBER 31, 2018

Board of Directors
Miami Nation Enterprises
Miami, Oklahoma

We have audited the accompanying consolidated financial statements of **Miami Nation Enterprises**, a political economic subdivision of the Miami Tribe of Oklahoma, which comprise the consolidated balance sheet as of December 31, 2018, and the related consolidated statements of operations, owners' equity, and cash flows for the year then ended, and the related notes to the consolidated financial statements.

Management's Responsibility for the Consolidated Financial Statements

Management is responsible for the preparation and fair presentation of these consolidated financial statements in accordance with accounting principles generally accepted in the United States of America; this includes the design, implementation, and maintenance of internal control relevant to the preparation and fair presentation of consolidated financial statements that are free from material misstatement, whether due to fraud or error.

Auditor's Responsibility

Our responsibility is to express an opinion on these consolidated financial statements based on our audit. We did not audit the financial statements of Miami Tribe Entertainment, a wholly-owned subsidiary, whose statements reflect total assets constituting 2% of consolidated total assets at December 31, 2018, and total revenues constituting 2% of consolidated total revenues for the year then ended; TSI Global Companies, LLC and subsidiaries, whose statements reflect total assets constituting 14% of consolidated total assets at December 31, 2018, and total revenues constituting 16% of consolidated total revenues for the year then ended; CK Contractors and Development, LLC, whose statements reflect total assets constituting 30% of consolidated total assets at December 31, 2018, and total revenues constituting 28% of consolidated total revenues for the year then ended; Excel Utility Contractors, LLC, whose statements reflect total assets constituting 7% of consolidated total assets at December 31, 2018, and total revenues constituting 10% of consolidated total revenues for the year then ended; Nations Cabinetry, LLC, whose statements reflect total assets constituting 15% of consolidated total assets at December 31, 2018, and total revenues constituting 25% of consolidated total revenues for the year then ended. Those statements were audited by other auditors, whose reports have been furnished to us, and our opinion, insofar as it relates to the amounts included for Miami Tribe Entertainment; TSI Global Companies, LLC and subsidiaries; CK Contractors and Development, LLC; Excel Utility Contractors, LLC; and Nations Cabinetry, LLC, is based solely on the reports of the other auditors. We conducted our audit in accordance with auditing standards generally accepted in the United States of America. Those standards require that we plan and perform the audit to obtain reasonable assurance about whether the consolidated financial statements are free from material misstatement.

An audit involves performing procedures to obtain audit evidence about the amounts and disclosures in the consolidated financial statements. The procedures selected depend on the auditor's judgment, including the assessment of the risks of material misstatement of the consolidated financial statements, whether due to fraud or error. In making those risk assessments, the auditor considers internal control relevant to the entity's preparation and fair presentation of the consolidated financial statements in order to design audit procedures that are appropriate in the circumstances, but not for the purpose of expressing

3271 East Battlefield, Suite 300, Springfield, MO 65804 • **Phone** 417-881-0145 • **Fax** 417-881-1016
3929 East 7th Street, Suite C, Joplin, MO 64801 • **Phone** 417-206-0508 • **Fax** 417-206-1718
9229 Ward Parkway, Suite 110, Kansas City, MO 64114 • **Phone** 913-671-8600 • **Fax** 913-671-8601

an opinion on the effectiveness of the entity's internal control. Accordingly, we express no such opinion. An audit also includes evaluating the appropriateness of accounting policies used and the reasonableness of significant accounting estimates made by management, as well as evaluating the overall presentation of the consolidated financial statements.

We believe that the audit evidence we have obtained is sufficient and appropriate to provide a basis for our audit opinion.

Opinion

In our opinion, based on our audit and the reports of the other auditors, the consolidated financial statements referred to above present fairly, in all material respects, the financial position of **Miami Nation Enterprises**, a political economic subdivision of the Miami Tribe of Oklahoma**,** as of December 31, 2018, and the results of their operations and their cash flows for the year then ended in accordance with accounting principles generally accepted in the United States of America.

Emphasis of Matter

As discussed in Note 1, the consolidated financial statements present **Miami Nation Enterprises**, a political economic subdivision of the Miami Tribe of Oklahoma, and do not purport to, and do not present fairly the financial position of the Miami Tribe of Oklahoma, as of December 31, 2018, the changes in its financial position, or where applicable, its cash flows for the year then ended in accordance with accounting principles generally accepted in the United States of America. Our opinion on the 2018 consolidated financial statements is not modified with respect to this matter.

Report on Supplementary Information

Our audit was conducted for the purpose of forming an opinion on the consolidated financial statements as a whole. The schedule of operating expenses is presented for purposes of additional analysis and is not a required part of the consolidated financial statements. Such information is the responsibility of management and was derived from and relates directly to the underlying accounting and other records used to prepare the consolidated financial statements. The information has been subjected to the auditing procedures applied in the audit of the consolidated financial statements and certain additional procedures, including comparing and reconciling such information directly to the underlying accounting and other records used to prepare the consolidated financial statements or to the consolidated financial statements themselves, and other additional procedures in accordance with auditing standards generally accepted in the United States of America. In our opinion, the information is fairly stated in all material respects in relation to the consolidated financial statements as a whole.

THE WHITLOCK CO, LLP

Springfield, Missouri

June 3, 2019

CONSOLIDATED FINANCIAL STATEMENTS

MIAMI NATION ENTERPRISES

CONSOLIDATED BALANCE SHEET
December 31, 2018

ASSETS

Current assets	
Cash and cash equivalents	$ 14,996,987
Accounts receivable, net of allowance of $1,314,041	28,208,619
Notes receivable	193,356
Cost and earnings in excess of billings	3,145,629
Inventories	5,737,822
Prepaid expenses	907,983
Other current assets	693,463
Total current assets	53,883,859
Property and equipment	
Buildings and improvements	3,492,572
Land and improvements	251,953
Equipment and vehicles	39,254,242
Furniture and office equipment	3,658,036
Software	366,956
	47,023,759
Less accumulated depreciation	(22,867,967)
Total property and equipment, net	24,155,792
Other non-current assets	
Land, held for sale	400,000
Other non-current assets	273,166
Goodwill, net	9,564,635
Total non-current assets	10,237,801
Total assets	$ 88,277,452

MIAMI NATION ENTERPRISES

LIABILITIES AND OWNERS' EQUITY

Current liabilities	
Accounts payable	$ 13,430,701
Accrued expenses and other current liabilities	1,410,045
Salaries and payroll taxes payable	2,565,474
Billings in excess of cost and earnings	3,089,774
Distributions payable	1,945,228
Due to Tribe	366,522
Lines of credit payable	1,177,225
Long-term debt - current portion	4,416,743
Total current liabilities	28,401,712
Long-term liabilities	
Long-term debt	6,489,558
Other long-term liabilities	229,664
Total long-term liabilities	6,719,222
Owners' equity	
Noncontrolling interest in subsidiaries	8,509,069
Contributed capital	38,800,278
Retained earnings	5,847,171
Total owners' equity	53,156,518
Total liabilities and owners' equity	$ 88,277,452

The accompanying notes are an integral part of these consolidated financial statements.

MIAMI NATION ENTERPRISES

CONSOLIDATED STATEMENT OF OPERATIONS
Year ended December 31, 2018

Operating revenues	$ 222,429,443
Direct costs of revenues	172,225,596
Gross profit	50,203,847
Operating expenses	34,912,321
Operating income	15,291,526
Other income (expense):	
Interest income	62,949
Miscellaneous income/(expense)	617,580
Interest expense	(452,518)
Gain on sale of assets	151,843
Goodwill impairment	(447,079)
Noncontrolling interest in earnings	(4,613,788)
	(4,681,013)
Net income	10,610,513
Beginning retained earnings (adjusted)	1,497,976
Transfer of capital from noncontrolling interest	(1,135,513)
Distributions	(5,125,805)
Ending retained earnings	$ 5,847,171

The accompanying notes are an integral part of these financial statements.

CONSOLIDATED STATEMENT OF OWNERS' EQUITY
Year ended December 31, 2018

Miami Nation Enterprises

	Contributed Capital	Retained Earnings	Total
Balance, December 31, 2017	$ 38,800,278	$ 1,537,860	$ 40,338,138
Prior period adjustment	-	(39,884)	(39,884)
Transfer of capital from noncontrolling interest	-	(1,135,513)	(1,135,513)
Net income	-	10,610,513	10,610,513
Distributions to Tribe	-	(5,125,805)	(5,125,805)
Balance, December 31, 2018	$ 38,800,278	$ 5,847,171	$ 44,647,449

Noncontrolling interest in subsidiaries

	Contributed	Retained	Total
Balance, December 31, 2017	$ 4,300,663	$ 2,264,987	$ 6,565,650
Prior period adjustment	-	(90,456)	(90,456)
Additional contributed capital	1,846,463	-	1,846,463
Transfer of capital to MNE	-	1,135,513	1,135,513
Net income	-	4,613,788	4,613,788
Distributions	-	(5,561,889)	(5,561,889)
Balance, December 31, 2018	$ 6,147,126	$ 2,361,943	$ 8,509,069

The accompanying notes are an integral part of these financial statements.

MIAMI NATION ENTERPRISES

CONSOLIDATED STATEMENT OF CASH FLOWS
Year ended December 31, 2018

Cash flows from operating activities	
Net income	$ 10,610,513
Adjustments to reconcile net income	
to net cash provided by operating activities:	
Minority interests in earnings	4,613,788
Depreciation and amortization	5,591,524
Gain on sale of assets	(151,843)
Gain on debt cancellation	(797,653)
Increase in allowance for doubtful accounts	1,305,917
Impairment and amortization of intangibles, net of acquisitions	622,712
Increase (decrease) in:	
Accounts receivable	74,484
Notes receivable	(15,712)
Costs and estimated earnings on uncompleted contracts in excess of related billings	575,860
Inventories	765,141
Deposits	158,164
Prepaids	185,726
Other current assets	(622,146)
Accounts payable	(2,447,652)
Accrued expenses and other liabilities	(1,356,368)
Due to Tribe	(173,478)
Salaries and payroll taxes payable	1,469,418
Billings on uncompleted contracts in excess of related costs and estimated earnings	(3,185,146)
Other long-term liabilities	(598,249)
Total adjustments	6,014,487
Net cash provided by operating activities	16,625,000

(continued)

The accompanying notes are an integral part of these financial statements.

MIAMI NATION ENTERPRISES

CONSOLIDATED STATEMENTS OF CASH FLOWS
(continued)

Cash flows from investing activities	
Acquisition of capital assets	(10,044,425)
Proceeds from disposal of capital assets	370,738
Net cash used in investing activities	(9,673,687)
Cash flows from financing activities	
Minority interest capital contributions	1,846,463
Distributions to Tribe	(3,488,892)
Distributions on minority interests	(5,561,889)
Advances on lines-of-credit	600,000
Payments on lines-of-credit	(896,025)
Proceeds from long-term debt	5,938,893
Repayment of long-term debt	(5,449,558)
Payments to Members	1,190,380
Net cash used in financing activities	(5,820,628)
Net increase (decrease) in cash	1,130,685
Cash and equivalents, beginning of year	13,866,302
Cash and equivalents, end of year	$ 14,996,987
Non-cash and supplemental information	
Cash paid during the year for interest	$ 452,518
Disbursement of property to Tribe	$ 1,636,913

The accompanying notes are an integral part of these financial statements.

MIAMI NATION ENTERPRISES

NOTES TO CONSOLIDATED FINANCIAL STATEMENTS

December 31, 2018

1. Summary of significant accounting policies

This summary of significant accounting policies is presented to assist in understanding the consolidated financial statements of **Miami Nation Enterprises (MNE)**. The consolidated financial statements and notes are representations of Miami Nation Enterprises management, which is responsible for their integrity and objectivity.

The preparation of consolidated financial statements in conformity with accounting principles generally accepted in the United States of America requires management to make estimates and assumptions that affect the reported amounts of assets and liabilities and disclosures of contingent assets and liabilities at the date of the financial statements and the reported amounts of revenues and expenses during the reporting period. Actual results could differ from those estimates. Significant estimates include, but are not limited to, an allowance for doubtful accounts, depreciation and valuation of goodwill.

Reporting entity

Miami Nation Enterprises is a political economic subdivision of the Miami Tribe of Oklahoma, a federally recognized Indian Tribe. MNE owns a diversified group of businesses that operate in several industries, including government contracting, construction, consumer products, technology, entertainment, and health care.

The financial statements presented pertain only to the operations of Miami Nation Enterprises and its wholly-owned and majority-owned divisions and subsidiaries and are not intended to present fairly the financial position and results of operations of the Miami Tribe of Oklahoma, in conformity with accounting principles generally accepted in the United States of America.

Basis of consolidation

The consolidated financial statements include the accounts of MNE and its wholly-owned divisions along with their wholly-owned and majority-owned subsidiaries. Intercompany transactions and balances have been eliminated. These wholly-owned divisions, wholly-owned subsidiaries and majority-owned subsidiaries include:

Government Contracting
- Miami Business Services, LLC
- Miami Technology Solutions, LLC
- Native American Management Services, Inc.
- Miami Environmental & Energy Solutions, LLC

Construction
- CK Contractors and Development, LLC
- Excel Utility Contractors, LLC
- White Loon Construction

Consumer Products
- Carnahan-White, LLC (includes Carnahan-White of Arkansas, LLC)
- Nation's Cabinetry, LLC

HFC OKC, LLC (Hoffman Kitchen and Bath)
Champion Commercial Fence Builders, LLC

Technology
TSI Global, LLC
GMNE Technologies, LLC (Innovative Objects)

Entertainment
Miami Tribe Entertainment (MTE, Prairie Sun and Prairie Moon Casinos)
Miami Cineplex
Wiihsiniko
Josie's Eatery
Smoke Shop

Health Care
Ohio Ambulance Solutions, LLC
OAS Health Care Ventures, LLC

Short-term Lending
MNE Services, Inc.

During 2018, the noncontrolling owners of Carnahan-White, LLC and HFC OKC, LLC agreed to surrender their interests in the respective entities. MNE absorbed these ownership interests into retained earnings for a total of $1,135,513.

Basis of accounting

The consolidated financial statements of MNE have been prepared on the accrual basis of accounting in accordance with generally accepted accounting principles. Revenues are recognized when earned and expenses are recognized when incurred.

Cash and cash equivalents

Cash and cash equivalents include all monies in banks and highly liquid investments with maturity dates of three months or less. MNE places its cash in financial institutions with investment grade ratings. At times, such amounts may be in excess of the FDIC insurance limit.

MNE is required to maintain a Debt Service Reserve Account with Pinnacle Bank in an amount equal to three months of payments of principal and interest due on debt (see Note 6). As of December 31, 2018, this balance was $170,377 and classified as Cash and cash equivalents in the balance sheet, as it services current obligations.

Fair value of financial instruments

MNE's financial instruments consistent of cash and cash equivalents, and the carrying amount approximates fair value due to their short maturities.

Receivables

Trade receivables are carried at original invoice, less an estimate made for doubtful receivables. Management provides for probable uncollectable amounts through a charge to earnings and a credit to a reserve for bad debts based on its assessment of the status of individual accounts. Balances that are still outstanding after management has used reasonable collection efforts are written off through a charge to the reserve for bad debts.

Inventories

Inventories consist of materials and supplies that have not been charged to specific jobs or contracts and are stated at the lower of cost or market.

Property and equipment

Property and equipment are recorded at cost. Maintenance and repairs are expensed as incurred. Management reviews the carrying amount of its property and equipment for impairment whenever events or changes in circumstances indicate that the carrying amount of an asset may not be recoverable. There were no indicators of impairment as of December 31, 2018. When property and equipment are sold or otherwise disposed of, the cost and related accumulated depreciation are removed from the accounts, and the resulting gain or losses are included in the statements of income. Depreciation expense is provided on a straight-line method over the estimated useful lives of the assets ranging from five to fifty years. Leasehold improvements are depreciated over the lesser of the estimated useful life or the remaining lease term that considers renewal periods that are reasonably assured.

Long-lived asset impairment

MNE evaluates the recoverability of the carrying value of long-lived assets whenever events or circumstances indicate the carrying amount may not be recoverable. If a long-lived asset is tested for recoverability and the undiscounted estimated future cash flows expected to result from the use and eventual disposition of the asset is less than the carrying amount of the asset, the asset cost is adjusted to fair value and an impairment loss is recognized as the amount by which the carrying amount of a long-lived asset exceeds its fair value. No asset impairment was recognized during the year ended December 31, 2018.

Amortization

Other assets subject to amortization are amortized over their estimated useful lives. Deferred lease expenses are amortized over the term of the lease agreement.

Goodwill

Goodwill represents the excess of the purchase price of an acquired entity over the amounts assigned to assets acquired and liabilities assumed. Testing for goodwill impairment is performed on an annual basis. Goodwill impairment of $447,079 was recorded on December 31, 2018. See Note 5 for additional information on goodwill.

Revenue recognition

For its government contracting and construction businesses, MNE recognizes revenue from contracts by the percentage-of-completion method, measured by the percentage of total cost incurred to date to the estimated total cost for each contract. This method is used because management considers total cost to be the best available measure of progress on contracts.

Contract costs include all direct material and labor costs related to contract performance. Provisions for estimated losses on uncompleted contracts are made in the year in which such losses are determined. Changes in job performance, job conditions, and estimated profitability may result in revisions to costs and income, which are recognized in the year in which the revisions are determined. Because of the inherent uncertainties in estimated costs, it is at least reasonably possible that the estimates of costs and revenues will change in the near term.

The aggregate of costs incurred, and income recognized on uncompleted contracts, in excess of related billings is shown as a current asset, and the aggregate of billings on uncompleted contracts in excess of related costs incurred and income recognized is shown as a current liability.

MNE's technology, entertainment and health care businesses generally recognize revenue when services are provided. In some instances, revenues from contracts for technology-related services are recognized using the percentage-of-completion method described above.

Advertising

Advertising costs are charged to expense as incurred. MNE incurred approximately $454,000 in advertising costs for the year ended December 31, 2018, which is included in operating expenses in the accompanying consolidated statement of operations.

Income taxes

MNE is a Tribal Corporation established under the Miami Nation Enterprises Act of 2004 and is therefore not subject to federal or state income taxes.

Recent accounting pronouncements

In May 2014, the FASB issued *ASU No. 2014-09*, *Revenue from Contracts with Customers*, which requires an entity to recognize the amount of revenue to which it expects to be entitled for the transfer of promised goods or services to customers. This guidance will replace most existing revenue recognition guidance in U.S. GAAP when it becomes effective. The new standard is effective for fiscal years beginning after December 15, 2018. Early application is not permitted. The standard permits the use of either the retrospective or cumulative effect transition method. MNE is currently evaluating the impact of the pending adoption of *ASU 2014-09* on the consolidated financial statements.

In February 2016, the FASB issued *ASU 2016-02 Leases*. *ASU 2016-02* requires recognition of the assets and liabilities that arise from leases. The new standard is effective for fiscal years beginning after December 15, 2019. MNE is currently evaluating the effect that implementation of the new standard will have on its financial position, results of operations, and cash flows.

The FASB issued *ASU 2016-13, Measurement of Credit Losses* on Financial Instruments, in June 2016. Its implementation will result in a new Accounts Receivable loss accounting framework, also

known as the current expected credit loss (CECL) model. CECL requires credit losses expected throughout the life of the asset to be recorded at the time of origination. Under the current incurred loss model, losses are recorded when it is probable that a loss event has occurred. The new standard will require significant operational changes, especially in data collection and analysis. The ASU is effective for interim and annual periods beginning January 1, 2021 and is expected to increase the allowance upon adoption. MNE is assessing the standard and is in the process of reviewing the capability of its systems and processes to support the data collection and retention required to implement the new standard.

2. Industry environment – short-term lending

MNE Services, Inc., a wholly-owned subsidiary of MNE, operated in the short-term lending industry by virtue of providing capital and business support services to its loan portfolios. MNE Services, Inc. discontinued substantially all of its lending activities in 2013.

3. Commitments and Contingencies

Operating leases

MNE leases a number of warehouses, buildings, factories, and office spaces under operating leases as reported under rent expense. The leases typically run for a period of 5-15 years, generally with options to renew the lease after that date.

Future minimum rental payments required as of December 31, 2018, in the aggregate and for each of the five succeeding fiscal years are as follows:

For the years ended December 31,	
2019	$ 3,279,077
2020	1,189,585
2021	570,724
2022	287,483
2023	263,916
Thereafter	16,493
	$ 5,607,278

Total rent expense under all operating leases for the year ended December 31, 2018, was approximately $2,814,313.

4. Property and equipment

A description of MNE's capitalization policy along with a general description of the method used in computing depreciation on each major class is disclosed in Note 1. Balances of major classes of depreciable assets, by nature or function, and accumulated depreciation as of December 31, 2018 is as reported in the Consolidated Balance Sheet. Depreciation expense for the year ended December 31, 2018 amounted to $5,591,524.

5. Goodwill

A summary of changes in the carrying amount of goodwill for the year ended December 31, 2018, is shown below:

	Goodwill
Balance at January 1, 2018	$ 10,057,007
Addition of goodwill	32,076
Impairment of goodwill	(447,079)
Amortization of goodwill	(77,369)
Balance at December 31, 2018	$ 9,564,635

The fair value of goodwill is tested for impairment annually. Due to various factors, operating profits and cash flows were lower than expected for two subsidiaries. Therefore, MNE has recognized impairment losses of $447,079, as noted above. The fair value of subsidiaries was estimated using the expected present value of future cash flows.

Nation's Cabinetry, LLC (majority-owned subsidiary) has adopted the accounting alternative for goodwill available to private companies under Financial Accounting Standards Board (FASB) Accounting Standards Codification (ASC) 350-20 – *Goodwill*. Accordingly, Nations Cabinetry amortizes goodwill on a straight-line basis over three years. Amortization of goodwill amounted to $4,243 for the year ended December 31, 2018. Accumulated amortization as of December 31, 2018 is $50,913 and the goodwill is fully amortized. No triggering events occurred during the year ended December 31, 2018 that required goodwill impairment testing on Nations Cabinetry's goodwill and, accordingly, no impairment loss was recorded in 2018.

Carnahan-White, LLC (wholly-owned subsidiary) has adopted the accounting alternative for goodwill available to private companies under Financial Accounting Standards Board (FASB) Accounting Standards Codification (ASC) 350-20 – *Goodwill*. Accordingly, Carnahan-White amortizes goodwill on a straight-line basis. Amortization of goodwill amounted to $73,126 for the year ended December 31, 2018. Amortization of goodwill is expected to be $73,126 for 2018. Accumulated amortization as of December 31, 2018 is $303,922. No triggering events occurred during the year ended December 31, 2018 that required goodwill impairment testing on Carnahan-White's goodwill and, accordingly, no impairment loss was recorded in 2018.

6. Revolving lines-of-credit and long-term debt

MNE has a line of credit for $1,177,258 with Welch State Bank, secured by all business assets. The balance is payable on demand and bears interest at a rate of 6.75%. The line of credit was paid off and closed on January 7, 2019.

TSI Global, LLC has a $4,000,000 revolving line-of-credit plus interest with Fifth Third Bank, which is due May 23, 2019. Interest is charged on the outstanding balance at 2.50%, plus one-month Libor rate. This loan is collateralized by the assets of TSI Global, LLC. As of December 31, 2018, there was no outstanding balance.

At December 31, 2018, long-term debt consisted of the following:

Note payable to Pinnacle Bank, payable $57,097 monthly, prime plus 1.25% interest due February 2022, secured by various company assets.	$ 2,049,764
Note payable to UMB, payable $25,000 monthly, due March 2020	350,000
Two notes payable to Advantage Funding, payable $3,702 monthly, 6.24% interest, due June 2020, secured by vehicles.	63,458
Three notes payable to Advantage Funding, payable $4,786 monthly 6.24% interest, due August 2020, secured by vehicles.	90,678
Note payable to Advantage Funding, payable $1,554 monthly, 6.25% interest, due August 2020, secured by vehicles.	29,442
Note payable to Advantage Funding, payable $1,589 monthly, 5.70% interest, due February 2020, secured by vehicles.	21,472
Note payable to Advantage Funding, payable $1,765 monthly, 7.25% interest, due December 2022, secured by a vehicle.	73,336
Notes payable to Key Bank, payable $3,092 monthly, 5.75% interest, due May 2022 secured by vehicles.	117,365
Notes payable to Key Bank, payable $2,522 monthly, 6.75% interest, due September 2022, secured by vehicles.	75,775
Note payable to Advantage Funding, payable $4,105 monthly, 7.27% interest, due February, 2023, secured by a vehicle.	173,587
Note payable to Bank of Washington, payable $10,893 monthly, Prime plus 2%, secured by all business assets guaranteed by minority members.	116,174
Note payable to CNH Industrial Finance, payable $3,403 to $4,404 monthly, 4.99% to 5.99% interest, secured by equipment.	84,978
Note payable to Stearns Bank, payable $3,594 to $6,437 monthly, including interest ranging 5.25% to 5.90%, secured by equipment and minority member guaranteed.	170,060
Note payable to Wells Fargo Equipment Finance, payable $1,086 monthly, including interest at 5.65%, secured by equipment.	43,935

Note payable to De Lage Landen Financial, payable $680 monthly, 4.89% interest, due January 2019, secured by equipment.	28,488
Notes payable to Ally Financial, payable $1,031 monthly, 4.19% interest, secured by equipment.	79,413
Notes payable to Ford Motor Credit, payable monthly ranging from $810 to $1,110 monthly, interest ranging from 2.9% to 6.94%, secured by equipment.	214,272
Notes payable to TCF Equipment Finance, payable monthly ranging from $4,846 to $12,170 monthly, zero interest, secured by equipment.	23,780
Notes payable to John Deere Credit, payable monthly ranging from $1,572 to $13,255, interest ranging from 0% to 3.50%, secured by equipment.	3,757,113
Notes payable to Wells Fargo Bank, payable monthly ranging from $3,121 to $4,405 monthly, 4.88% interest, secured by equipment.	376,198
Notes payable to Komatsu Financial, payable monthly ranging from $2,285 to $26,465, 0% to 2.49% interest, secured by equipment.	2,096,449
Notes payable to Webster Capital, payable monthly ranging from $8,324 to $22,004, 1.95% - 2.95% interest, secured by equipment.	716,954
Note payable to Citizens One Finance, payable $594 monthly, 4.76% interest, due June 2021, secured by a vehicle.	16,649
Note payable to Bank of America, payable $639 monthly, 5.82% interest, due September 2024, secured by a vehicle.	37,402
Capital lease with PNC Equipment Finance, payable $842 monthly, due October 2021, secured by equipment.	53,431
Notes payable to Ford Motor Credit, payable monthly payments ranging from $285 to $300, 5.29% interest, secured by vehicles.	7,357
Note payable to Ford Motor Credit, payable $633 monthly, 6.49% interest, due April 2021, secured by a vehicle.	16,431
Note payable to Ford Motor Credit, payable $633 monthly, 6.49% interest, due April 2020, secured by a vehicle.	10,280

Capital lease with HP Financial Services, payable $2,606 monthly, 7.29% interest, due October 2019, secured by IT equipment.	12,060
Total long-term debt	$ 10,906,301
Less current maturities	(4,416,743)
	$ 6,489,558

Future maturities of long-term debt are as follows:

2019	$ 4,416,743
2020	3,469,174
2021	2,364,399
2022	567,263
2023 and thereafter	88,722
	$ 10,906,301

On June 22, 2017, UMB Bank, N.A. (UMB) provided notice of default and demand against MNE and GMNE Technologies, LLC (GMNE) based on certain promissory notes, a business loan, and commercial security agreements allegedly entered into by MNE and GMNE, on or about March 6, 2015, in the amount of $1,397,653 together with accrued unpaid interest and other charges incurred under the Commercial Loan Documents. On March 15, 2018, a settlement was reached in which MNE will pay $25,000 each month until the total settlement portion of $600,000 is paid in full. The current balance is included in the table above.

7. Costs and estimated earnings on uncompleted contracts

At December 31, 2018, costs and estimated earnings on uncompleted contracts consisted of the following:

Costs incurred on uncompleted contracts	$ 94,396,392
Estimated earnings recorded	21,391,798
Less billings to date	(115,732,335)
Net	$ 55,855

The above is included in the accompanying balance sheet under the following captions:

Costs and estimated earnings on uncompleted contracts in excess of related billings	$ 3,145,629
Billings on uncompleted contracts in excess of related costs and estimated earnings	(3,089,774)
	$ 55,855

8. Employee retirement plan

MNE companies sponsor various defined contribution 401(k) plans covering all eligible employees. Employees may contribute to the plan up to a maximum of $17,500 annually. Company contributions represent a partial matching of 2% to 5% of employee contributions. Contributions are invested at the direction of the employee in one or more funds. Company contributions charged to expense for the year ended December 31, 2018 were $284,809.

9. Related party transactions

Notes payable

MNE has a note payable due to the Miami Tribe of Oklahoma for $265,000, which is unsecured and matures in February 2020.

Lines of credit

Nations Cabinetry, LLC has an unsecured line of credit with MNE in the amount of $10,050,000. Interest accrues at 6.5% per annum. As of December 31, 2018, the outstanding balance was $8,682,434 with interest expense of approximately $612,700.

CK Contractors has an unsecured line of credit with MNE in the amount of $2,000,000. Interest is payable monthly at 6.5% per annum. As of December 31, 2018, there was no outstanding balance.

Excel Utility Contractors has an unsecured line of credit with MNE in the amount of $2,225,000. Interest is payable monthly at 6.5% per annum. As of December 31, 2018, the outstanding balance was $1,800,000 with interest expense of approximately $120,310.

Hoffman has an unsecured line of credit with MNE in the amount of $1,050,000.

OAS has an unsecured line of credit with MNE in the amount of $2,045,319. Interest is payable monthly at 6.5% per annum. As of December 31, 2018, the outstanding balance was $1,945,319.

Carnahan-White has an unsecured line of credit with MNE in the amount of $6,875,000. Interest is payable monthly at 6.5% per annum. As of December 31, 2018, the outstanding balance was $6,546,111.

Champion Commercial Fence Builders has an unsecured line of credit with MNE in the amount of $700,000. Interest is payable monthly at 6.5% per annum. As of December 31, 2018, the outstanding balance was $665,597.

Leases

Ohio Ambulance Solutions, LLC paid approximately $72,000 to a close member of the family of the CEO for the lease of a building.

Nations Cabinetry, LLC leases warehouse space from a related party. Total rent expense for the warehouse was approximately $270,600 during 2018. The lease was renewed effective June 30, 2018 for 18 months at a rate of $22,550 per month.

CK Contractors rents a storage area and equipment from minority owners of the business. They incurred $148,147 of expense related to these leases during 2018. The storage area lease is active through September 2019 and automatically renews three times every five years unless notice of intent not to renew is given. The equipment is leased on a month-to-month basis.

Excel Utility Contractors rents its office and warehouse from an affiliated company. They incurred rent expense of $66,000 related to this lease during 2018. The lease is active through May 2019 and automatically renews three times every five years unless notice of intent not to renew is given. Excel also rented equipment to a company partially owned by minority owners for $106,147 during 2018. The equipment is leased on a month-to-month basis.

Other significant related party transactions

Payroll and payroll-related expenses of MTE are paid by MNE. Additionally, property and other shared expenses of the Enterprise are paid by MNE. As of December 31, 2018, MTE had a liability of $876,971 due to MNE for payroll and other expenses MNE paid on behalf of MTE.

The building and certain other capital assets used by the Prairie Sun Casino (MTE) were not paid for by the Prairie Sun Casino. These assets had a cost basis of approximately $5,540,000 at December 31, 2018 and are not included in the Prairie Sun Casino's capital assets. These items are presented as capital assets of the Tribe. The Enterprise does not pay rent for the use of the aforementioned assets.

During the year ended December 31, 2018, MNE paid for renovations of the Prairie Moon Casino. The Prairie Moon Casino did not incur any costs related to the renovations. These building improvements have a cost basis of approximately $1,630,000 and are not included in the Prairie Moon Casino's capital assets. These items are presented as capital assets of the Tribe. The Enterprise does not pay rent for the use of the aforementioned assets.

Excel Utility Contractors uses an affiliated company as a subcontractor. Excel paid this affiliated company $2,771,341 for work completed during the year ended December 31, 2018.

TSI Global had a contractor, related through common ownership, perform contract services during 2018. Payments to the related entity for the services were $60,125 for the year ended December 31, 2018.

TSI Global performed contract services for two entities related through common ownership during 2018. Services performed for these entities totaled $334,526 and amounts due from these entities was $7,319 as of December 31, 2018.

CK Contractors incurred management fees to a member of $1,463,381. This amount was included in professional fees.

10. Litigation

Excel Utility Contractors, LLC (Company) is currently litigating an account receivable in the amount of $931,874. The Company is attempting to collect the full amount of the receivable; however, the Company has written down the value in the accompanying financial statements to $225,000. This amount is included in accounts receivable in the consolidated balance sheet.

Some of the companies whose financial statements are included in the accompanying consolidated financial statements are involved in litigation arising in the normal course of business. MNE's

management estimates these matters will be resolved without having a material adverse effect on MNE's financial position or results of operations.

11. Discontinued operations and component held-for-sale

MNE ceased operations of White Loon Construction (White Loon), a wholly-owned subsidiary, on April 7, 2017. White Loon was still winding down operations and liquidating assets as of December 31, 2018. Revenue and operating loss presented in the consolidated financial statements for White Loon were $8,400 and $45,227, respectively, as of December 31, 2018. Total assets for White Loon were $225,380 as of December 31, 2018.

MNE has put up for sale the operations and equipment of Miami Cineplex due to continued operating losses. The component is expected to be disposed of prior to December 31, 2019. As part of the disposal, MNE would maintain ownership of the Cineplex building and lease it to the new operator. Revenue and net loss presented in the consolidated financial statements for Miami Cineplex were $594,630 and $59,626, respectively, as of December 31, 2018. Total assets for Miami Cineplex were $918,606 as of December 31, 2018.

12. Prior period adjustments

OAS Healthcare Ventures, LLC has made a prior period adjustment due to organizational costs that were capitalized, instead of expensed during 2017. The correction resulted in a $39,884 adjustment to MNE's beginning retained earnings and $90,456 adjustment to minority interests.

13. Subsequent events

In preparing these financial statements, MNE has evaluated events and transactions for potential recognition or disclosure through June 3, 2019, the date the consolidated financial statements were available to be issued.

Miami Nation Enterprises has distributed $1,150,000 to the Miami Tribe of Oklahoma as of June 3, 2019.

Miami Tribe Entertainment has distributed $460,100 to the Miami Tribe of Oklahoma as of June 3, 2019.

MNE obtained a term note from Native American Bank, N.A. on December 18, 2018. The note is for $4,200,000, bears interest of Wall Street Journal Prime + 1.5% which adjusts annually (currently 6.5%), and matures December 18, 2028. The note funds were disbursed on January 4, 2019. Subsequently, notes for Welch State Bank and Pinnacle Bank were paid off (Note 6).

SUPPLEMENTARY INFORMATION

MIAMI NATION ENTERPRISES

SCHEDULE OF OPERATING EXPENSES
Year ended December 31, 2018

Operating expenses:	
Salaries & wages	$ 17,813,780
Payroll taxes	1,149,476
Employee benefits	1,928,955
Workers comp	165,351
Contract labor	1,003,927
Auto	240,859
Bank charges	153,628
Consulting	240,211
Depreciation	1,443,647
Donations	24,432
Dues & subscriptions	136,799
Insurance	859,253
Legal & professional	1,429,103
Maintenance & equipment	455,799
Marketing	454,491
Meals & entertainment	112,795
Postage & freight	43,337
Rent	1,464,639
Security	5,830
Supplies	763,609
Taxes, licenses & permits	476,074
Tech support	832,942
Telephone	370,653
Training	189,203
Travel & living	702,054
Utilities	519,974
Bad debt	457,653
Other	1,473,847
Total operating expenses	$ 34,912,321

See independent auditor's report.

THE WHITLOCK CO.

CPAs and Consultants

MIAMI NATION ENTERPRISES

CONSOLIDATED FINANCIAL STATEMENTS
with
INDEPENDENT AUDITOR'S REPORT

YEAR ENDED DECEMBER 31, 2019

THE WHITLOCK CO.

CPAs and Consultants

INDEPENDENT AUDITOR'S REPORT

Board of Directors
Miami Nation Enterprises
Miami, Oklahoma

We have audited the accompanying consolidated financial statements of **Miami Nation Enterprises**, a political economic subdivision of the Miami Tribe of Oklahoma, which comprise the consolidated balance sheet as of December 31, 2019, and the related consolidated statements of operations, owners' equity, and cash flows for the year then ended, and the related notes to the consolidated financial statements.

Management's Responsibility for the Consolidated Financial Statements

Management is responsible for the preparation and fair presentation of these consolidated financial statements in accordance with accounting principles generally accepted in the United States of America; this includes the design, implementation, and maintenance of internal control relevant to the preparation and fair presentation of consolidated financial statements that are free from material misstatement, whether due to fraud or error.

Auditor's Responsibility

Our responsibility is to express an opinion on these consolidated financial statements based on our audit. We did not audit the financial statements of Šooli Entertainment, a wholly-owned subsidiary, whose statements reflect total assets constituting 2% of consolidated total assets at December 31, 2019, and total revenues constituting 2% of consolidated total revenues for the year then ended; TSI Global Companies, LLC and subsidiaries, whose statements reflect total assets constituting 13% of consolidated total assets at December 31, 2019, and total revenues constituting 15% of consolidated total revenues for the year then ended; CK Contractors and Development, LLC, whose statements reflect total assets constituting 30% of consolidated total assets at December 31, 2019, and total revenues constituting 29% of consolidated total revenues for the year then ended; Excel Utility Contractors, LLC, whose statements reflect total assets constituting 10% of consolidated total assets at December 31, 2019, and total revenues constituting 11% of consolidated total revenues for the year then ended; Nations Cabinetry, LLC, whose statements reflect total assets constituting 16% of consolidated total assets at December 31, 2019, and total revenues constituting 27% of consolidated total revenues for the year then ended. Those statements were audited by other auditors, whose reports have been furnished to us, and our opinion, insofar as it relates to the amounts included for Šooli Entertainment; TSI Global Companies, LLC and subsidiaries; CK Contractors and Development, LLC; Excel Utility Contractors, LLC; and Nations Cabinetry, LLC, is based solely on the reports of the other auditors. We conducted our audit in accordance with auditing standards generally accepted in the United States of America. Those standards require that we plan and perform the audit to obtain reasonable assurance about whether the consolidated financial statements are free from material misstatement.

An audit involves performing procedures to obtain audit evidence about the amounts and disclosures in the consolidated financial statements. The procedures selected depend on the auditor's judgment,

including the assessment of the risks of material misstatement of the consolidated financial statements, whether due to fraud or error. In making those risk assessments, the auditor considers internal control relevant to the entity's preparation and fair presentation of the consolidated financial statements in order to design audit procedures that are appropriate in the circumstances, but not for the purpose of expressing an opinion on the effectiveness of the entity's internal control. Accordingly, we express no such opinion. An audit also includes evaluating the appropriateness of accounting policies used and the reasonableness of significant accounting estimates made by management, as well as evaluating the overall presentation of the consolidated financial statements.

We believe that the audit evidence we have obtained is sufficient and appropriate to provide a basis for our audit opinion.

Opinion

In our opinion, based on our audit and the reports of the other auditors, the consolidated financial statements referred to above present fairly, in all material respects, the financial position of **Miami Nation Enterprises**, a political economic subdivision of the Miami Tribe of Oklahoma**,** as of December 31, 2019, and the results of their operations and their cash flows for the year then ended in accordance with accounting principles generally accepted in the United States of America.

Emphasis of Matter

As discussed in Note 1, the consolidated financial statements present **Miami Nation Enterprises**, a political economic subdivision of the Miami Tribe of Oklahoma, and do not purport to, and do not present fairly the financial position of the Miami Tribe of Oklahoma, as of December 31, 2019, the changes in its financial position, or where applicable, its cash flows for the year then ended in accordance with accounting principles generally accepted in the United States of America. Our opinion on the 2019 consolidated financial statements is not modified with respect to this matter.

Report on Supplementary Information

Our audit was conducted for the purpose of forming an opinion on the consolidated financial statements as a whole. The schedule of operating expenses is presented for purposes of additional analysis and is not a required part of the consolidated financial statements. Such information is the responsibility of management and was derived from and relates directly to the underlying accounting and other records used to prepare the consolidated financial statements. The information has been subjected to the auditing procedures applied in the audit of the consolidated financial statements and certain additional procedures, including comparing and reconciling such information directly to the underlying accounting and other records used to prepare the consolidated financial statements or to the consolidated financial statements themselves, and other additional procedures in accordance with auditing standards generally accepted in the United States of America. In our opinion, the information is fairly stated in all material respects in relation to the consolidated financial statements as a whole.

THE WHITLOCK CO., LLP

Springfield, Missouri

May 20, 2020

CONSOLIDATED FINANCIAL STATEMENTS

MIAMI NATION ENTERPRISES

CONSOLIDATED BALANCE SHEET
December 31, 2019

ASSETS

Current assets	
Cash and cash equivalents	$ 18,399,944
Accounts receivable, net of allowance of $255,124	5,958,939
Contracts receivable, net of allowance of $335,661	25,624,684
Contracts receivable, retainage	6,128,375
Notes receivable	404,021
Contract assets	2,879,627
Inventories	7,135,424
Prepaid expenses	1,262,664
Other current assets	762,985
Total current assets	68,556,663
Property and equipment	
Buildings and improvements	3,996,672
Land and improvements	251,954
Equipment and vehicles	44,424,261
Furniture and office equipment	2,857,381
Software	366,956
	51,897,224
Less accumulated depreciation	(27,346,435)
Total property and equipment, net	24,550,789
Other non-current assets	
Land, held for sale	400,000
Other non-current assets	402,510
Goodwill, net	9,276,253
Total non-current assets	10,078,763
Total assets	$ 103,186,215

MIAMI NATION ENTERPRISES

LIABILITIES AND OWNERS' EQUITY

Current liabilities	
Accounts payable	$ 20,247,142
Accrued expenses and other current liabilities	1,895,213
Salaries and payroll taxes payable	2,674,706
Contract liabilities	5,063,253
Distributions payable	2,069,580
Long-term debt - current portion	3,578,399
Total current liabilities	35,528,293
Long-term liabilities	
Long-term debt	8,184,991
Other long-term liabilities	223,476
Total long-term liabilities	8,408,467
Owners' equity	
Noncontrolling interest in subsidiaries	10,238,261
Contributed capital	38,800,278
Retained earnings	10,210,916
Total owners' equity	59,249,455
Total liabilities and owners' equity	$ 103,186,215

The accompanying notes are an integral part of these consolidated financial statements.

MIAMI NATION ENTERPRISES

CONSOLIDATED STATEMENT OF OPERATIONS
Year ended December 31, 2019

Operating revenues	$ 246,719,990
Direct costs of revenues	198,349,643
Gross profit	48,370,347
Operating expenses	36,252,321
Operating income	12,118,026
Other income (expense):	
Interest income	143,516
Miscellaneous income	463,080
Interest expense	(575,474)
Gain on sale of assets	5,341
Goodwill impairment	(150,447)
	(113,984)
Net income	12,004,042
Less: Net income attibutable to noncontrolling interest	(3,377,698)
Net income attributable to MNE	$ 8,626,344

The accompanying notes are an integral part of these consolidated financial statements.

CONSOLIDATED STATEMENT OF OWNERS' EQUITY
Year ended December 31, 2019

Miami Nation Enterprises

	Contributed Capital	Retained Earnings	Total
Balance, December 31, 2018	$ 38,800,278	$ 5,847,171	$ 44,647,449
Transfer of capital to non-controlling interest	-	(89,347)	(89,347)
Net income	-	8,626,344	8,626,344
Distributions to Tribe	-	(4,173,252)	(4,173,252)
Balance, December 31, 2019	$ 38,800,278	$ 10,210,916	$ 49,011,194

Noncontrolling interest in subsidiaries

	Contributed	Retained	Total
Balance, December 31, 2018	$ 6,147,126	$ 2,361,943	$ 8,509,069
Transfer of capital deficit from MNE	-	89,347	89,347
Additional contributed capital	1,371,096	-	1,371,096
Net income	-	3,377,698	3,377,698
Distributions	-	(3,108,949)	(3,108,949)
Balance, December 31, 2019	$ 7,518,222	$ 2,720,039	$ 10,238,261

The accompanying notes are an integral part of these consolidated financial statements.

MIAMI NATION ENTERPRISES

CONSOLIDATED STATEMENT OF CASH FLOWS
Year ended December 31, 2019

Cash flows from operating activities	
Net income	$ 8,626,344
Adjustments to reconcile net income	
to net cash provided by operating activities:	
Non-controlling interest in earnings	3,377,698
Depreciation and amortization	6,282,676
Gain on sale of assets	(5,341)
Impairment of goodwill	150,447
Increase (decrease) in:	
Accounts, contracts, and retainage receivable, net	(9,503,379)
Notes receivable	(210,665)
Contract assets	266,002
Inventories	(1,397,602)
Prepaids	(354,681)
Other current assets	(198,866)
Accounts payable	6,816,441
Accrued expenses and other liabilities	485,168
Due to Tribe	(366,522)
Salaries and payroll taxes payable	109,232
Contract liabilities	1,973,479
Other long-term liabilities	(6,188)
Total adjustments	7,417,899
Net cash provided by operating activities	16,044,243

(continued)

The accompanying notes are an integral part of these consolidated financial statements.

MIAMI NATION ENTERPRISES

CONSOLIDATED STATEMENTS OF CASH FLOWS
(continued)

Cash flows from investing activities	
Acquisition of capital assets	(6,665,417)
Proceeds from disposal of capital assets	131,020
Net cash used in investing activities	(6,534,397)
Cash flows from financing activities	
Non-controlling interest capital contributions	1,371,096
Distributions to Tribe	(4,048,900)
Distributions to non-controlling interests	(3,108,949)
Advances on lines-of-credit	1,020,376
Payments on lines-of-credit	(2,197,601)
Proceeds from long-term debt	7,792,415
Repayment of long-term debt	(6,935,326)
Net cash used in financing activities	(6,106,889)
Net increase in cash	3,402,957
Cash and equivalents, beginning of year	14,996,987
Cash and equivalents, end of year	$ 18,399,944
Non-cash and supplemental information	
Cash paid during the year for interest	$ 575,474

The accompanying notes are an integral part of these consolidated financial statements.

1. Summary of significant accounting policies

This summary of significant accounting policies is presented to assist in understanding the consolidated financial statements of **Miami Nation Enterprises (MNE)**. The consolidated financial statements and notes are representations of Miami Nation Enterprises management, which is responsible for their integrity and objectivity.

The preparation of consolidated financial statements in conformity with accounting principles generally accepted in the United States of America requires management to make estimates and assumptions that affect the reported amounts of assets and liabilities and disclosures of contingent assets and liabilities at the date of the financial statements and the reported amounts of revenues and expenses during the reporting period. Actual results could differ from those estimates. Significant estimates include, but are not limited to, an allowance for doubtful accounts, depreciation and valuation of goodwill.

Reporting entity

Miami Nation Enterprises is a political economic subdivision of the Miami Tribe of Oklahoma, a federally recognized Indian Tribe. MNE owns a diversified group of businesses that operate in several industries, including government contracting, construction, consumer products, technology, entertainment, and health care.

The financial statements presented pertain only to the operations of Miami Nation Enterprises and its wholly-owned and majority-owned divisions and subsidiaries and are not intended to present fairly the financial position and results of operations of the Miami Tribe of Oklahoma, in conformity with accounting principles generally accepted in the United States of America.

Basis of consolidation

The consolidated financial statements include the accounts of MNE and its wholly-owned divisions along with their wholly-owned and majority-owned subsidiaries. Intercompany transactions and balances have been eliminated. These wholly-owned divisions, wholly-owned subsidiaries and majority-owned subsidiaries include:

Government Contracting
- Miami Business Services, LLC
- Miami Technology Solutions, LLC
- Native American Management Services, Inc.
- Miami Environmental & Energy Solutions, LLC
- Miami Wiipica, LLC
- Miami Tribal Systems Integrators, LLC
- Champion Commercial Fence Builders, LLC

Construction
- CK Contractors and Development, LLC
- Excel Utility Contractors, LLC
- Carnahan-White, LLC (includes Carnahan-White of Arkansas, LLC)
- White Loon Construction

Consumer Products
- Nation's Cabinetry, LLC
- HFC OKC, LLC (Hoffman Kitchen and Bath)

Technology
- TSI Global, LLC

Entertainment
- Šooli Entertainment (Prairie Sun and Prairie Moon Casinos and related restaurants)
- Miami Cineplex

Health Care
- Ohio Ambulance Solutions, LLC
- OAS Health Care Ventures, LLC

Short-term Lending
- MNE Services, Inc.

New accounting standard adopted

In May 2014, the Financial Accounting Standards Board (FASB) issued new accounting guidance which amended the existing accounting standards for revenue recognition. The new accounting guidance establishes principles for recognizing revenue upon the transfer of promised goods or services to customers, in an amount that reflects the expected consideration received in exchange for those goods or services. MNE adopted the new standard on January 1, 2019 using the modified retrospective approach. The adoption of this new accounting standard does not have a material affect on the financial statements of MNE, however, it has resulted in expanded disclosures.

As part of the adoption of Topic 606, the Company elected the following transition practical expedients: (i) to apply the portfolio approach when applying revenue recognition as it relates to contracts with customers with similar characteristics; (ii) to reflect the aggregate of all contract modifications that occurred prior to the date of initial application when identifying satisfied and unsatisfied performance obligations, determining the transaction price, and allocating the transaction price; (iii) to account for the incremental costs of obtaining a contract as an expense when incurred if the amortization period of the asset that the entity otherwise would have recognized is one year or less; (iv) to not adjust the promised amount of consideration for the effects of a significant financing component if the entity expects at the inception of the contract that the period between when the entity transfers a promised good or service to a customer will be one year or less from when the customer pays for that good or service; and (v) to apply the standard only to contracts that are not completed at the initial date of application. There is not a significant impact as a result of electing these practical expedients.

Cash and cash equivalents

Cash and cash equivalents include all monies in banks and highly liquid investments with maturity dates of three months or less. MNE places its cash in financial institutions with investment grade ratings. At times, such amounts may be in excess of the FDIC insurance limit.

Fair value of financial instruments

MNE's financial instruments consist of cash and cash equivalents, and the carrying amount approximates fair value due to their short maturities.

Accounts receivable

Trade receivables are carried at original invoice, less an estimate made for doubtful receivables. Management provides for probable uncollectable amounts through a charge to earnings and a credit to a reserve for bad debts based on its assessment of the status of individual accounts. Balances that are still outstanding after management has used reasonable collection efforts are written off through a charge to the reserve for bad debts.

Revenue recognition, Contracts receivable, Contract assets and liabilities

The government contracting, construction, and technology companies (Companies) generally recognize revenues over time as performance obligations are satisfied. The Companies generally measure progress to completion using an input measure of total costs incurred divided by total costs expected to be incurred. In the course of providing services, the Companies routinely subcontract for services and incur other direct costs on behalf of clients. These costs are passed through to clients and, in accordance with GAAP, are included in the Companies' revenue and cost of revenue.

Recognition of revenue and profit is dependent upon a number of factors, including the accuracy of a variety of estimates made at the balance sheet date, such as engineering progress, material quantities, the achievement of milestones, penalty provisions, labor productivity and cost estimates. Additionally, the Companies are required to make estimates for the amount of consideration to be received, including bonuses, awards, incentive fees, claims, unpriced change orders, penalties, and liquidated damages. Variable consideration is included in the estimate of the transaction price only to the extent that a significant reversal would not be probable. Management continuously monitors factors that may affect the quality of its estimates, and material changes in estimates are disclosed accordingly.

The following summarizes MNE's major contract types:

Cost Reimbursable Contracts

Cost reimbursable contracts include cost-plus fixed fee, cost-plus fixed rate, and time-and-materials price contracts. Under cost-plus contracts, the Company charges clients for its costs, including both direct and indirect costs, plus a negotiated fee or rate. The Company recognizes revenue based on actual direct costs incurred and the applicable fixed rate or portion of the fixed fee earned as of the balance sheet date. Under time-and-materials price contracts, the Company negotiates hourly billing rates and charges its clients based on the actual time that it expends on a project. In addition, clients reimburse the Company for materials and other direct incidental expenditures incurred in connection with its performance under the contract. The Company may apply a practical expedient to recognize revenue in the amount in which it has the right to invoice if its right to consideration is equal to the value of performance completed to date.

Fixed-Price-Contracts

Fixed price contracts include both lump-sum and fixed-unit price contracts. Under lump-sum contracts, the Company performs all the work under the contract for a specified fee. Lump-sum

contracts are typically subject to price adjustments if the scope of the project changes or unforeseen conditions arise. Under fixed-unit price contracts, the Company performs a number of units of work at an agreed price per unit with the total payment under the contract determined by the actual number of units delivered. Revenue is recognized for fixed-price contracts using the input method measured on a cost-to-cost basis. For service contracts in which the Company has the right to consideration from the customer in an amount that corresponds directly with the value to the customer of the Company's performance completed to date, revenue is recognized when services are performed and contractually billable.

Time and Materials Contracts

The Company negotiates hourly billing rates and charges its customers based on actual time expended on the project. In addition, the Company is reimbursed for materials and other incidental expenditures incurred in connection with its performance under the contract. The Company may apply a practical expedient to recognize revenue in the amount in which it has the right to invoice if its right to consideration is equal to the value of its performance.

Service Contracts

For service contracts (including maintenance contracts) in which the Company has the right to consideration from the customer in an amount that corresponds directly with the value to the customer of the Company's performance completed to date, revenue is recognized when services are performed and contractually billable. For all other service contracts, the Company recognizes revenue over time using the cost-to-cost percentage-of-completion method.

The Company's timing of revenue recognition may not be consistent with its rights to bill and collect cash from its customers. Those rights are generally dependent on contract terms. The Company's contracts receivable represents amounts billed to customers that have yet to be collected and represent an unconditional right to cash from its customers. Contracts receivable are stated at the amount management expects to collect from balances outstanding at year-end. Based on management's assessment of the credit history with customers having outstanding balances and current relationships with them, it has concluded that realization losses on balances outstanding at year-end will be insignificant. Contract retainages represent amounts invoiced to customers where payment has been withheld by the customer until the work is completed and are included in contracts receivable.

Contract assets represent revenue recognized in excess of amounts billed and include unbilled receivables and contract work in progress. Unbilled receivables, which represent an unconditional right to payment subject only to the passage of time, are reclassified to accounts receivable when they are billed under the terms of the contract. Contract liabilities represent amounts billed to clients in excess of revenue recognized to date. The company anticipates that substantially all incurred cost associated with contract assets as of December 31, 2019 will be billed and collected within one year.

MNE's consumer products, entertainment and health care businesses generally recognize revenue at a point-in-time when performance obligations are satisfied.

Inventories

Inventories consist of materials and supplies that have not been charged to specific jobs or contracts and are stated at the lower of cost or market.

Property and equipment

Property and equipment are recorded at cost. Maintenance and repairs are expensed as incurred. Management reviews the carrying amount of its property and equipment for impairment whenever events or changes in circumstances indicate that the carrying amount of an asset may not be recoverable. There were no indicators of impairment as of December 31, 2019. When property and equipment are sold or otherwise disposed of, the cost and related accumulated depreciation are removed from the accounts, and the resulting gain or losses are included in the statements of income. Depreciation expense is provided on a straight-line method over the estimated useful lives of the assets ranging from five to fifty years. Leasehold improvements are depreciated over the lesser of the estimated useful life or the remaining lease term that considers renewal periods that are reasonably assured.

Long-lived asset impairment

MNE evaluates the recoverability of the carrying value of long-lived assets whenever events or circumstances indicate the carrying amount may not be recoverable. If a long-lived asset is tested for recoverability and the undiscounted estimated future cash flows expected to result from the use and eventual disposition of the asset is less than the carrying amount of the asset, the asset cost is adjusted to fair value and an impairment loss is recognized as the amount by which the carrying amount of a long-lived asset exceeds its fair value. No asset impairment was recognized during the year ended December 31, 2019.

Amortization

Other assets subject to amortization are amortized over their estimated useful lives. Deferred lease expenses are amortized over the term of the lease agreement.

Goodwill

Goodwill represents the excess of the purchase price of an acquired entity over the amounts assigned to assets acquired and liabilities assumed. Testing for goodwill impairment is performed on an annual basis. Goodwill impairment of $150,447 was recorded on December 31, 2019. See Note 5 for additional information on goodwill.

Advertising

Advertising costs are charged to expense as incurred. MNE incurred approximately $806,992 in advertising costs for the year ended December 31, 2019, which is included in operating expenses in the accompanying consolidated statement of operations.

Income taxes

MNE is a Tribal Corporation established under the Miami Nation Enterprises Act of 2004 and is therefore not subject to federal or state income taxes.

Recent accounting pronouncements

In February 2016, the FASB issued *ASU 2016-02 Leases*. *ASU 2016-02* requires recognition of the assets and liabilities that arise from leases. The new standard is effective for fiscal years beginning

after December 15, 2020. MNE is currently evaluating the effect that implementation of the new standard will have on its financial position, results of operations, and cash flows.

The FASB issued *ASU 2016-13, Measurement of Credit Losses* on Financial Instruments, in June 2016. Its implementation will result in a new Accounts Receivable loss accounting framework, also known as the current expected credit loss (CECL) model. CECL requires credit losses expected throughout the life of the asset to be recorded at the time of origination. Under the current incurred loss model, losses are recorded when it is probable that a loss event has occurred. The ASU is effective for interim and annual periods beginning January 1, 2023. MNE is assessing the standard and is in the process of reviewing the capability of its systems and processes to support the data collection and retention required to implement the new standard.

2. Industry environment – short-term lending

MNE Services, Inc., a wholly-owned subsidiary of MNE, operated in the short-term lending industry by virtue of providing capital and business support services to its loan portfolios. MNE Services, Inc. discontinued substantially all of its lending activities in 2013. It is currently a non-operational entity.

3. Commitments and Contingencies

Operating leases

MNE leases a number of warehouses, buildings, factories, and office spaces under operating leases as reported under rent expense. The leases typically run for a period of 5-15 years, generally with options to renew the lease after that date.

Future minimum rental payments required as of December 31, 2019, in the aggregate and for each of the five succeeding fiscal years are as follows:

For the years ended December 31,	
2020	$ 3,284,850
2021	2,453,275
2022	2,210,344
2023	1,912,733
2024	1,643,513
Thereafter	9,222,120
	$ 20,726,835

Total rent expense under all operating leases for the year ended December 31, 2019, was approximately $2,821,030.

4. Property and equipment

A description of MNE's capitalization policy along with a general description of the method used in computing depreciation on each major class is disclosed in Note 1. Balances of major classes of depreciable assets, by nature or function, and accumulated depreciation as of December 31, 2019 is as

reported in the Consolidated Balance Sheet. Depreciation expense for the year ended December 31, 2019 amounted to $6,144,741.

5. Goodwill

A summary of changes in the carrying amount of goodwill for the year ended December 31, 2019, is shown below:

Balance at January 1, 2019	$ 9,564,635
Addition of goodwill	-
Impairment of goodwill	(150,447)
Amortization of goodwill	(137,935)
Balance at December 31, 2019	$ 9,276,253

The fair value of goodwill is tested for impairment annually. Due to various factors, operating profits and cash flows were lower than expected for one subsidiary. Therefore, MNE has recognized impairment losses of $150,447, as noted above. The fair value of subsidiaries was estimated using the expected present value of future cash flows.

Carnahan-White, LLC (wholly-owned subsidiary) has adopted the accounting alternative for goodwill available to private companies under Financial Accounting Standards Board (FASB) Accounting Standards Codification (ASC) 350-20 – *Goodwill*. Accordingly, Carnahan-White amortizes goodwill on a straight-line basis. Amortization of goodwill amounted to $137,935 for the year ended December 31, 2019. Amortization of goodwill is expected to be $137,935 for 2020. Accumulated amortization as of December 31, 2019 is $441,857. No triggering events occurred during the year ended December 31, 2019 that required goodwill impairment testing on Carnahan-White's goodwill and, accordingly, no impairment loss was recorded in 2019.

6. Revolving lines-of-credit and long-term debt

MNE has a revolving line of credit (RLOC) for $3,000,000 with Native American Bank, N.A., secured by all business assets of Miami Technology Solutions, LLC. The RLOC matures on December 18, 2021 and bears interest at WSJ prime + 1.5% (6.25% as of December 31, 2019). The RLOC had no outstanding balance as of December 31, 2019.

TSI Global, LLC has a $4,000,000 revolving line-of-credit plus interest with Busey Bank, which is due October 1, 2020. Interest is charged on the outstanding balance at 2.30%, plus one-month Libor rate. This loan is collateralized by the assets of TSI Global, LLC. As of December 31, 2019, there was no outstanding balance. The line-of-credit agreement contains a covenant to maintain a minimum amount of tangible net worth and was in compliance with this covenant as of December 31, 2019.

TSI Global, LLC has a $4,000,000 revolving line-of-credit plus interest with Fifth Third Bank, which is due May 23, 2020. Interest is charged on the outstanding balance at 2.50% plus one-month Libor rate. This loan is collateralized by the assets of the Company. As of December 31, 2019, there was no outstanding balance.

Ohio Ambulance Solutions, LLC has a $750,000 revolving line-of-credit plus interest with Key Bank, which is due June 1, 2020. This loan is collateralized by the assets of Ohio Ambulance Solutions, LLC. As of December 31, 2019, there was no outstanding balance.

At December 31, 2019, long-term debt consisted of the following:

Note payable to Native American Bank, payable $48,797 monthly, prime plus 1.50% interest due December 2028, secured by various company assets.	$ 3,880,883
Note payable to UMB, payable $25,000 monthly, due March 2020.	50,000
Two notes payable to Advantage Funding, payable $3,702 monthly, 6.24% interest, due June 2020, secured by vehicles.	21,814
Three notes payable to Advantage Funding, payable $4,662 monthly, 6.25% interest, due August 2020, secured by vehicles.	36,427
Note payable to Advantage Funding, payable $1,678 monthly, 6.24% interest, due August 2020, secured by vehicles.	13,111
Note payable to Advantage Funding, payable $1,589 monthly, 5.70% interest, due February 2020, secured by vehicles.	3,152
Note payable to Advantage Funding, payable $1,765 monthly, 7.25% interest, due December 2022, secured by a vehicle.	56,931
Notes payable to Key Bank, payable $3,092 monthly, 5.75% interest, due June 2022, secured by vehicles.	86,201
Notes payable to Key Bank, payable $2,522 monthly, 6.75% interest, due September 2021, secured by vehicles.	49,828
Note payable to Advantage Funding, payable $4,105 monthly, 7.27% interest, due February 2023, secured by a vehicle.	135,700
Notes payable to Ally Financial, payable $1,111 monthly, 6.94% interest, secured by vehicles.	78,942
Notes payable to Bell Bank, payable monthly ranging from $494 to $4,363, including interest ranging from 5.90% to 6.50%, secured by equipment.	235,478
Notes payable to Stearns Bank, payable $3,594 to $6,437 monthly, including interest ranging 5.25% to 5.90%, secured by equipment and minority member guaranteed.	50,374

Note payable to Wells Fargo Equipment Finance, payable $1,086 monthly, including interest at 5.65%, secured by equipment.	33,212
Note payable to De Lage Landen Financial, payable $680 monthly, 4.89% interest, secured by equipment.	21,562
Notes payable to Ally Financial, payable monthly ranging from $1,031 to $1,299, interest ranging from 4.19% to 6.99%, secured by equipment.	308,900
Notes payable to Ford Motor Credit, payable monthly ranging from $810 to $1,110, interest ranging from 2.90% to 6.94%, secured by equipment.	156,157
Note payable to GM Financial, payable $681 monthly, 5.99% interest, secured by vehicles.	66,410
Notes payable to John Deere Credit, payable monthly ranging from $1,572 to $13,255, interest ranging from 0% to 1.90%, secured by equipment.	3,969,183
Notes payable to Wells Fargo Bank, payable monthly ranging from $3,121 to $4,405 monthly, 4.88% interest, secured by equipment.	308,890
Notes payable to Komatsu Financial, payable monthly ranging from $1,391 to $26,465, 0% to 5.15% interest, secured by equipment.	1,757,795
Notes payable to Webster Capital, payable monthly ranging from $8,324 to $22,004, 1.95% to 2.95% interest, secured by equipment.	365,794
Note payable to Ford Motor Credit, payable $286 monthly, 5.29% interest, due March 2020, secured by a vehicle.	907
Note payable to Citizens One Finance, payable $594 monthly, 4.76% interest, due June 2021, secured by a vehicle.	1,793
Note payable to Bank of America, payable $639 monthly, 5.82% interest, due September 2024, secured by a vehicle.	31,754
Capital lease with PNC Equipment Finance, payable $903 monthly, due October 2021, secured by equipment.	42,192
Total long-term debt	$ 11,763,390
Less current maturities	(3,578,399)
	$ 8,184,991

Future maturities of long-term debt are as follows:

2020	$ 3,985,281
2021	2,895,778
2022	1,464,805
2023	877,210
2024 and thereafter	2,540,316
	$ 11,763,390

7. Revenue from contracts with customers

Performance obligations

To determine the proper revenue recognition method, the Companies evaluate whether two or more contracts should be combined and accounted for as one single contract and whether the combined or single contract should be accounted for as more than one performance obligation. The majority of the Companies contracts have a single performance obligation as the promise to transfer the individual goods or services is not separately identifiable from other promises in the contracts and therefore, not distinct. The Companies may also promise to provide distinct services within a contract in which case the Companies separate the contract into multiple performance obligations. For contracts with multiple performance obligations, the Companies allocate the contract transaction price to each performance obligation using the best estimate of the standalone selling price of each distinct good or service in the contract.

Variable Consideration

Contract modifications are common in the performance of the Company's contracts. Contracts modified typically result from changes in scope, specifications, design, performance, or period of completion. In most cases, contract modifications are for services that are not distinct, and, therefore, are accounted for as a modification to the original contract price. The modification to the contract price is recorded to the extent it is probable that such change orders will result in additional contract revenue and the amount of such additional revenue can be reliably estimated.

Contract Costs

Direct costs of contracts include all costs incurred in connection with and directly for the benefit of client contracts. The level of direct costs of contracts may fluctuate between reporting periods due to a variety of factors, including the amount of pass-through costs incurred during a period. Contract costs include labor, subcontract costs, and other direct costs. Contract estimates are based on various assumptions to project the outcome of future events. These assumptions are dependent upon the accuracy of a variety of estimates, including engineering progress, achievement of milestones, labor productivity and cost estimates. Due to uncertainties inherent in the estimation process, it is possible that actual completion costs may vary from estimates. If estimated total costs on contracts indicate a loss or reduction to the percentage of total contract revenues recognized to date, these losses or reductions are recognized in the period in which the revisions are known. The effect of revisions to revenues, estimated costs to complete contracts, including penalties, incentive awards, change orders, claims, anticipated losses and others are recorded on the cumulative catchup basis in the period in which the revisions are identified and the loss can be reasonably estimated.

Disaggregation of revenue

At December 31, 2019, revenue, disaggregated by source and pattern of revenue recognition, consisted of the following:

Point-in-time	$ 80,937,505
Over time	
Cost reimbursable	4,138,737
Fixed price	153,377,360
Time and materials	6,178,592
Service	2,087,796
Total over time	$ 165,782,485
Total revenues	$ 246,719,990

8. Employee retirement plan

MNE companies sponsor various defined contribution 401(k) plans covering all eligible employees. Employees may contribute to the plan up to a maximum of $17,500 annually. Company contributions represent a partial matching of 2% to 5% of employee contributions. Contributions are invested at the direction of the employee in one or more funds. Company contributions charged to expense for the year ended December 31, 2019 were $414,182.

9. Related party transactions

Leases

Ohio Ambulance Solutions, LLC paid approximately $72,000 to a close member of the family of the CEO for the lease of a building.

Nations Cabinetry, LLC leases warehouse space from a related party. Total rent expense for the warehouse was approximately $270,600 during 2019. The lease was renewed effective June 30, 2018 for 18 months at a rate of $22,550 per month.

CK Contractors rents a storage area and equipment from non-controlling owners of the business. They incurred $50,821 of expense related to these leases during 2019. The storage area lease is active through September 2020 and automatically renews three times every five years unless notice of intent not to renew is given. The equipment is leased on a month-to-month basis.

Excel Utility Contractors rents its office and warehouse from an affiliated company. They incurred rent expense of $66,000 related to this lease during 2019. The lease is active through May 2020 and automatically renews three times every five years unless notice of intent not to renew is given. Excel also rented equipment to a company partially owned by minority owners for $8,824 during 2019. The equipment is leased on a month-to-month basis.

Other significant related party transactions

Payroll and payroll-related expenses of Šooli Entertainment are paid by MNE. Additionally, property and other shared expenses of the Enterprise are paid by MNE. As of December 31, 2019, Šooli

Entertainment had a liability of $1,694,554 due to MNE for payroll and other expenses MNE paid on behalf of Šooli Entertainment.

The building and certain other capital assets used by Šooli Entertainment were not paid for by Šooli Entertainment. These assets had a cost basis of approximately $5,540,000 at December 31, 2019 and are not included in Prairie Sun Casino's capital assets. These items are presented as capital assets of the Tribe. The Enterprise does not pay rent for the use of the aforementioned assets.

Excel Utility Contractors uses an affiliated company as a subcontractor. Excel paid this affiliated company $3,869,133 for work completed during the year ended December 31, 2019.

TSI Global had contractors, related through common ownership, perform contract services during 2019. Payments to the related entities for the services were $63,772 for the year ended December 31, 2019.

TSI Global performed contract services for two entities related through common ownership during 2019. Services performed for these entities totaled $230,712.

CK Contractors incurred management fees to a member of $878,051. This amount was included in professional fees.

10. Contingencies

Certain conditions may exist as of the date the financial statements are issued, which may result in a loss to MNE, but which will only be resolved when one or more future events occur or fail to occur. The Company's management and its legal counsel assess such contingent liabilities, and such assessment inherently involves an exercise of judgment. In assessing loss contingencies related to legal proceedings that are pending against the Company or unasserted claims that may result in such proceedings, the Company's legal counsel evaluates the perceived merits of any legal proceedings or unasserted claims as well as the perceived merits of the amount of relief sought or expected to be sought therein.

If the assessment of a contingency indicates that it is probable that a material loss has been incurred and the amount of the liability can be estimated, then the estimated liability would be accrued in the Company's financial statements. If the assessment indicates that a potentially material loss contingency is not probable, but is reasonably possible, or is probable but cannot be estimated, then the nature of the contingent liability, together with an estimate of the range of possible loss if determinable and material, would be disclosed.

Loss contingencies considered remote are generally not disclosed unless they involve guarantees, in which case the nature of the guarantee would be disclosed.

Some of the companies whose financial statements are included in the accompanying consolidated financial statements are involved in litigation arising in the ordinary course of business. MNE's management estimates these matters will be resolved without having a material adverse effect on MNE's financial position or results of operations.

11. Discontinued operations

MNE ceased operations of White Loon Construction (White Loon), a wholly-owned subsidiary, on April 7, 2017. White Loon was still winding down operations and liquidating assets as of December

31, 2019. Revenue and operating income presented in the consolidated financial statements for White Loon were $8,400 and $4,965, respectively, as of December 31, 2019. Total assets for White Loon were $264,841 as of December 31, 2019.

12. Subsequent events

In preparing these financial statements, MNE has evaluated events and transactions for potential recognition or disclosure through May 20, 2020, the date the consolidated financial statements were available to be issued.

Miami Nation Enterprises has distributed $1,052,916 to the Miami Tribe of Oklahoma as of May 20, 2020.

Šooli Entertainment has distributed $186,308 to the Miami Tribe of Oklahoma as of May 20, 2020.

MNE sold the Miami Cineplex on March 5, 2020 for $300,000, $200,000 of which was received at closing with a promissory note signed for the remaining $100,000, to be paid over 10 years. Revenue and net loss presented in the consolidated financial statements for Miami Cineplex were $569,754 and $43,229, respectively, as of December 31, 2019. Total assets for Miami Cineplex were $897,151 as of December 31, 2019.

COVID-19

Subsequent to December 31, 2019, the novel coronavirus (COVID-19) was identified as a global pandemic and began affecting the health of large populations around the world. As a result of the spread of COVID-19, economic uncertainties have arisen which may negatively affect the financial position, results of operations and cash flows of the Company. The duration of these uncertainties and the ultimate financial effects cannot be reasonably estimated at this time.

Due to the COVID-19 pandemic, Šooli Entertainment shut down casino operations on March 20, 2020. A reopen date has not yet been determined.

As a result of the CARES Act being passed on March 27, 2020, MNE subsidiaries were able to obtain Small Business Administration loans of approximately $12,378,504, payable over 18 months with the first payment starting 6 months after funding. If certain criteria are met, a portion of the loan proceeds may be forgiven.

In order to support operations during the current economic uncertainty due to COVID-19, Native American Bank granted MNE an additional $1,000,000 on their RLOC. The balance of the RLOC as of May 20, 2020 is $1,000,000.

SUPPLEMENTARY INFORMATION

MIAMI NATION ENTERPRISES

SCHEDULE OF OPERATING EXPENSES
Year ended December 31, 2019

Operating expenses:	
Salaries & wages	$ 18,988,903
Payroll taxes	1,130,607
Employee benefits	1,998,920
Workers comp	151,912
Contract labor	1,172,689
Auto	187,643
Bank charges	153,379
Consulting	362,819
Depreciation	1,341,465
Donations	32,858
Dues & subscriptions	209,849
Insurance	843,027
Legal & professional	1,274,557
Maintenance & equipment	453,331
Marketing	806,992
Meals & entertainment	90,480
Postage & freight	41,688
Rent	1,382,146
Security	8,643
Supplies	702,319
Taxes, licenses & permits	382,766
Tech support	749,549
Telephone	322,539
Training	152,933
Travel & living	680,153
Utilities	537,472
Overhead	80,092
Bad debt	370,759
Other	1,641,831
Total operating expenses	$ 36,252,321

See Independent Auditor's Report.

THE WHITLOCK CO.

CPAs and Consultants

MIAMI NATION ENTERPRISES

CONSOLIDATED FINANCIAL STATEMENTS
with
INDEPENDENT AUDITOR'S REPORT

YEAR ENDED DECEMBER 31, 2020

THE WHITLOCK CO.

CPAs and Consultants

INDEPENDENT AUDITOR'S REPORT

Board of Directors
Miami Nation Enterprises
Miami, Oklahoma

We have audited the accompanying consolidated financial statements of **Miami Nation Enterprises (MNE)**, a political economic subdivision of the Miami Tribe of Oklahoma, which comprise the consolidated balance sheet as of December 31, 2020, and the related consolidated statements of operations, owners' equity, and cash flows for the year then ended, and the related notes to the consolidated financial statements.

Management's Responsibility for the Consolidated Financial Statements

Management is responsible for the preparation and fair presentation of these consolidated financial statements in accordance with accounting principles generally accepted in the United States of America; this includes the design, implementation, and maintenance of internal control relevant to the preparation and fair presentation of consolidated financial statements that are free from material misstatement, whether due to fraud or error.

Auditor's Responsibility

Our responsibility is to express an opinion on these consolidated financial statements based on our audit. We did not audit the financial statements of Šooli Entertainment, a wholl- owned subsidiary, whose statements reflect total assets constituting 2% of consolidated total assets at December 31, 2020, and total revenues constituting 2% of consolidated total revenues for the year then ended; TSI Global Companies, LLC and subsidiaries, whose statements reflect total assets constituting 12% of consolidated total assets at December 31, 2020, and total revenues constituting 12% of consolidated total revenues for the year then ended; CK Contractors and Development, LLC, whose statements reflect total assets constituting 30% of consolidated total assets at December 31, 2020, and total revenues constituting 27% of consolidated total revenues for the year then ended; Excel Utility Contractors, LLC, whose statements reflect total assets constituting 11% of consolidated total assets at December 31, 2020, and total revenues constituting 18% of consolidated total revenues for the year then ended; Nations Cabinetry, LLC, whose statements reflect total assets constituting 16% of consolidated total assets at December 31, 2020, and total revenues constituting 26% of consolidated total revenues for the year then ended. Those statements were audited by other auditors, whose reports have been furnished to us, and our opinion, insofar as it relates to the amounts included for Šooli Entertainment; TSI Global Companies, LLC and subsidiaries; CK Contractors and Development, LLC; Excel Utility Contractors, LLC; and Nations Cabinetry, LLC, is based solely on the reports of the other auditors. We conducted our audit in accordance with auditing standards generally accepted in the United States of America. Those standards require that we plan and perform the audit to obtain reasonable assurance about whether the consolidated financial statements are free from material misstatement.

An audit involves performing procedures to obtain audit evidence about the amounts and disclosures in the consolidated financial statements. The procedures selected depend on the auditor's judgment,

including the assessment of the risks of material misstatement of the consolidated financial statements, whether due to fraud or error. In making those risk assessments, the auditor considers internal control relevant to the entity's preparation and fair presentation of the consolidated financial statements in order to design audit procedures that are appropriate in the circumstances, but not for the purpose of expressing an opinion on the effectiveness of the entity's internal control. Accordingly, we express no such opinion. An audit also includes evaluating the appropriateness of accounting policies used and the reasonableness of significant accounting estimates made by management, as well as evaluating the overall presentation of the consolidated financial statements.

We believe that the audit evidence we have obtained is sufficient and appropriate to provide a basis for our audit opinion.

Opinion

In our opinion, based on our audit and the reports of the other auditors, the consolidated financial statements referred to above present fairly, in all material respects, the financial position of **Miami Nation Enterprises**, a political economic subdivision of the Miami Tribe of Oklahoma, as of December 31, 2020, and the results of their operations and their cash flows for the year then ended in accordance with accounting principles generally accepted in the United States of America.

Emphasis of Matter

As discussed in Note 1, the consolidated financial statements present **Miami Nation Enterprises**, a political economic subdivision of the Miami Tribe of Oklahoma, and do not purport to, and do not present fairly the financial position of the Miami Tribe of Oklahoma, as of December 31, 2020, the changes in its financial position, or where applicable, its cash flows for the year then ended in accordance with accounting principles generally accepted in the United States of America. Our opinion on the 2020 consolidated financial statements is not modified with respect to this matter.

Report on Supplementary Information

Our audit was conducted for the purpose of forming an opinion on the consolidated financial statements as a whole. The schedule of operating expenses is presented for purposes of additional analysis and is not a required part of the consolidated financial statements. Such information is the responsibility of management and was derived from and relates directly to the underlying accounting and other records used to prepare the consolidated financial statements. The information has been subjected to the auditing procedures applied in the audit of the consolidated financial statements and certain additional procedures, including comparing and reconciling such information directly to the underlying accounting and other records used to prepare the consolidated financial statements or to the consolidated financial statements themselves, and other additional procedures in accordance with auditing standards generally accepted in the United States of America. In our opinion, the information is fairly stated in all material respects in relation to the consolidated financial statements as a whole.

THE WHITLOCK CO., LLP

Springfield, Missouri
May 28, 2021

CONSOLIDATED FINANCIAL STATEMENTS

MIAMI NATION ENTERPRISES

CONSOLIDATED BALANCE SHEET
December 31, 2020

ASSETS

Current assets	
Cash and cash equivalents	$ 35,920,387
Accounts receivable, net of allowance of $334,608	4,398,823
Contracts receivable, net of allowance of $99,732	28,877,704
Contracts receivable, retainage	5,396,049
Contract assets	5,996,499
Inventories	6,860,252
Prepaid expenses	873,102
Other current assets	78,934
Total current assets	88,401,750
Property and equipment	
Buildings and improvements	2,258,538
Land and improvements	97,361
Equipment and vehicles	45,379,411
Furniture and office equipment	1,130,577
Software	1,651,756
	50,517,643
Less accumulated depreciation	(26,571,453)
Total property and equipment, net	23,946,190
Other non-current assets	
Notes receivable	357,721
Land, held for sale	400,000
Other non-current assets	505,581
Goodwill, net	10,107,305
Total non-current assets	11,370,607
Total assets	$ 123,718,547

MIAMI NATION ENTERPRISES

LIABILITIES AND OWNERS' EQUITY

Current liabilities	
Accounts payable	$ 20,678,389
Accrued expenses and other current liabilities	2,661,472
Salaries and payroll taxes payable	1,910,421
Contract liabilities	7,699,108
Distributions payable	1,474,552
Long-term debt - current portion	3,606,164
Total current liabilities	38,030,106
Long-term liabilities	
Notes payable - SBA Paycheck Protection Program	9,245,723
Long-term debt	7,077,055
Other long-term liabilities	309,932
Total long-term liabilities	16,632,710
Owners' equity	
Noncontrolling interest in subsidiaries	10,753,027
Contributed capital	38,800,278
Retained earnings	19,502,426
Total owners' equity	69,055,731
Total liabilities and owners' equity	$ 123,718,547

The accompanying notes are an integral part of these consolidated financial statements.

MIAMI NATION ENTERPRISES

CONSOLIDATED STATEMENT OF OPERATIONS
Year ended December 31, 2020

Operating revenues	$ 241,052,683
Direct costs of revenues	193,282,737
Gross profit	47,769,946
Operating expenses	32,222,506
Operating income	15,547,440
Other income (expense):	
Interest income	78,359
Miscellaneous income	93,879
Interest expense	(243,327)
Loss on disposals of components	(292,494)
Loss on sale of fixed assets	(560,067)
Gain on extinguishment of debt	2,109,642
	1,185,992
Net income	16,733,432
Less: Net income attributable to noncontrolling interest	(3,787,055)
Net income attributable to MNE	$ 12,946,377

The accompanying notes are an integral part of these consolidated financial statements.

CONSOLIDATED STATEMENT OF OWNERS' EQUITY
Year ended December 31, 2020

Miami Nation Enterprises

	Contributed Capital	Retained Earnings	Total
Balance, December 31, 2019	$ 38,800,278	$ 10,210,916	$ 49,011,194
Net income	-	12,946,377	12,946,377
Distributions to Tribe	-	(3,654,867)	(3,654,867)
Balance, December 31, 2020	$ 38,800,278	$ 19,502,426	$ 58,302,704

Noncontrolling interest in subsidiaries

	Contributed Capital	Retained Earnings	Total
Balance, December 31, 2019	$ 7,518,222	$ 2,720,039	$ 10,238,261
Derecognition of noncontrolling deficit from sale	-	483,798	483,798
MNE acquisition of noncontrolling interest	-	(1,178,937)	(1,178,937)
Additional contributed capital	619,698	-	619,698
Net income	-	3,787,055	3,787,055
Distributions	-	(3,196,848)	(3,196,848)
Balance, December 31, 2020	$ 8,137,920	$ 2,615,107	$ 10,753,027

The accompanying notes are an integral part of these consolidated financial statements.

MIAMI NATION ENTERPRISES

CONSOLIDATED STATEMENT OF CASH FLOWS
Year ended December 31, 2020

Cash flows from operating activities	
Net income	$ 12,946,377
Adjustments to reconcile net income	
to net cash provided by operating activities:	
Non-controlling interest in earnings	3,787,055
Depreciation and amortization	5,954,220
Gain on acquistion of noncontrolling interest	(30,765)
Loss on sale of fixed assets	560,067
Loss on disposal of components	292,494
Increase (decrease) in:	
Accounts, contracts, and retainage receivable, net	(960,578)
Notes receivable	(246,194)
Contract assets	(3,116,872)
Inventories	275,172
Prepaids	389,562
Other assets	580,980
Accounts payable	431,247
Accrued expenses and other liabilities	766,259
Salaries and payroll taxes payable	(764,285)
Contract liabilities	2,635,855
Other long-term liabilities	86,456
Total adjustments	10,640,673
Net cash provided by operating activities	23,587,050

(continued)

The accompanying notes are an integral part of these consolidated financial statements.

MIAMI NATION ENTERPRISES

CONSOLIDATED STATEMENTS OF CASH FLOWS
(continued)

Cash flows from investing activities	
Acquisition of capital assets	(7,362,123)
Purchase of non-controlling interest	(2,250,000)
Sale of subsidiaries	1,415,342
Proceeds from disposal of capital assets	388,504
Net cash used in investing activities	(7,808,277)
Cash flows from financing activities	
Non-controlling interest capital contributions	619,698
Distributions to Tribe	(4,249,895)
Distributions to non-controlling interests	(3,196,848)
Proceeds from PPP loan	9,245,723
Proceeds from long-term debt	4,562,426
Repayment of long-term debt	(5,239,434)
Net cash provided by financing activities	1,741,670
Net increase in cash	17,520,443
Cash and equivalents, beginning of year	18,399,944
Cash and equivalents, end of year	$ 35,920,387
Non-cash and supplemental information	
Cash paid during the year for interest	$ 243,327

The accompanying notes are an integral part of these consolidated financial statements.

1. Summary of significant accounting policies

This summary of significant accounting policies is presented to assist in understanding the consolidated financial statements of **Miami Nation Enterprises (MNE)**. The consolidated financial statements and notes are representations of Miami Nation Enterprises management, which is responsible for their integrity and objectivity.

The preparation of consolidated financial statements in conformity with accounting principles generally accepted in the United States of America requires management to make estimates and assumptions that affect the reported amounts of assets and liabilities and disclosures of contingent assets and liabilities at the date of the financial statements and the reported amounts of revenues and expenses during the reporting period. Actual results could differ from those estimates. Significant estimates include, but are not limited to, an allowance for doubtful accounts, depreciation and valuation of goodwill.

Reporting entity

Miami Nation Enterprises is a political economic subdivision of the Miami Tribe of Oklahoma, a federally recognized Indian Tribe. MNE owns a diversified group of businesses that operate in several industries, including government contracting, construction, consumer products, technology and entertainment.

The financial statements presented pertain only to the operations of Miami Nation Enterprises and its wholly-owned and majority-owned divisions and subsidiaries and are not intended to present fairly the financial position and results of operations of the Miami Tribe of Oklahoma, in conformity with accounting principles generally accepted in the United States of America.

Basis of consolidation

The consolidated financial statements include the accounts of MNE and its wholly-owned divisions along with their wholly-owned and majority-owned subsidiaries. Intercompany transactions and balances have been eliminated. These wholly-owned divisions, wholly-owned subsidiaries and majority-owned subsidiaries include:

Government Contracting
- Miami Business Services, LLC
- Miami Technology Solutions, LLC
- Miami Environmental & Energy Solutions, LLC
- Miami Wiipica, LLC
- Miami Tribal Systems Integrators, LLC
- Miami Nation Stronghold, LLC
- Champion Commercial Fence Builders, LLC

Construction
- CK Contractors and Development, LLC
- Excel Utility Contractors, LLC
- Carnahan-White, LLC
- White Loon Construction (discontinued)

Consumer Products
Nation's Cabinetry, LLC

Technology
TSI Global, LLC

Entertainment
Šooli Entertainment (Prairie Sun and Prairie Moon Casinos and related restaurants)
Miami Cineplex (discontinued)

Recently adopted accounting standards

In May 2014, the Financial Accounting Standards Board (FASB) issued new accounting guidance which amended the existing accounting standards for revenue recognition. The new accounting guidance establishes principles for recognizing revenue upon the transfer of promised goods or services to customers, in an amount that reflects the expected consideration received in exchange for those goods or services. MNE adopted the new standard on January 1, 2019 using the modified retrospective approach. The adoption of this new accounting standard does not have a material effect on the financial statements of MNE, however, it has resulted in expanded disclosures.

As part of the adoption of Topic 606, the Company elected the following transition practical expedients: (i) to apply the portfolio approach when applying revenue recognition as it relates to contracts with customers with similar characteristics; (ii) to reflect the aggregate of all contract modifications that occurred prior to the date of initial application when identifying satisfied and unsatisfied performance obligations, determining the transaction price, and allocating the transaction price; (iii) to account for the incremental costs of obtaining a contract as an expense when incurred if the amortization period of the asset that the entity otherwise would have recognized is one year or less; (iv) to not adjust the promised amount of consideration for the effects of a significant financing component if the entity expects at the inception of the contract that the period between when the entity transfers a promised good or service to a customer will be one year or less from when the customer pays for that good or service; and (v) to apply the standard only to contracts that are not completed at the initial date of application. There is not a significant impact as a result of electing these practical expedients.

Cash and cash equivalents

Cash and cash equivalents include all monies in banks and highly liquid investments with maturity dates of three months or less. MNE places its cash in financial institutions with investment grade ratings. At times, such amounts may be in excess of the FDIC insurance limit.

Fair value of financial instruments

MNE's financial instruments consist of cash and cash equivalents, and the carrying amount approximates fair value due to their short maturities.

Accounts receivable

Trade receivables are carried at original invoice, less an estimate made for doubtful receivables. Management provides for probable uncollectable amounts through a charge to earnings and a credit to a reserve for bad debts based on its assessment of the status of individual accounts. Balances that are

still outstanding after management has used reasonable collection efforts are written off through a charge to the reserve for bad debts.

Revenue recognition, contracts receivable, contract assets and liabilities

The government contracting, construction, and technology companies (Companies) generally recognize revenues over time as performance obligations are satisfied. The Companies generally measure progress to completion using an input measure of total costs incurred divided by total costs expected to be incurred. In the course of providing services, the Companies routinely subcontract for services and incur other direct costs on behalf of clients. These costs are passed through to clients and, in accordance with GAAP, are included in the Companies' revenue and cost of revenue.

Recognition of revenue and profit is dependent upon a number of factors, including the accuracy of a variety of estimates made at the balance sheet date, such as engineering progress, material quantities, the achievement of milestones, penalty provisions, labor productivity and cost estimates. Additionally, the Companies are required to make estimates for the amount of consideration to be received, including bonuses, awards, incentive fees, claims, unpriced change orders, penalties, and liquidated damages. Variable consideration is included in the estimate of the transaction price only to the extent that a significant reversal would not be probable. Management continuously monitors factors that may affect the quality of its estimates, and material changes in estimates are disclosed accordingly.

The following summarizes MNE's major contract types:

Cost Reimbursable Contracts

Cost reimbursable contracts include cost-plus fixed fee, cost-plus fixed rate, and time-and-materials price contracts. Under cost-plus contracts, the Company charges clients for its costs, including both direct and indirect costs, plus a negotiated fee or rate. The Company recognizes revenue based on actual direct costs incurred and the applicable fixed rate or portion of the fixed fee earned as of the balance sheet date. Under time-and-materials price contracts, the Company negotiates hourly billing rates and charges its clients based on the actual time that it expends on a project. In addition, clients reimburse the Company for materials and other direct incidental expenditures incurred in connection with its performance under the contract. The Company may apply a practical expedient to recognize revenue in the amount in which it has the right to invoice if its right to consideration is equal to the value of performance completed to date.

Fixed Price Contracts

Fixed price contracts include both lump-sum and fixed-unit price contracts. Under lump-sum contracts, the Company performs all the work under the contract for a specified fee. Lump-sum contracts are typically subject to price adjustments if the scope of the project changes or unforeseen conditions arise. Under fixed-unit price contracts, the Company performs a number of units of work at an agreed price per unit with the total payment under the contract determined by the actual number of units delivered. Revenue is recognized for fixed price contracts using the input method measured on a cost-to-cost basis. For service contracts in which the Company has the right to consideration from the customer in an amount that corresponds directly with the value to the customer of the Company's performance completed to date, revenue is recognized when services are performed and contractually billable.

Time and Materials Contracts

The Company negotiates hourly billing rates and charges its customers based on actual time expended on the project. In addition, the Company is reimbursed for materials and other incidental expenditures incurred in connection with its performance under the contract. The Company may apply a practical expedient to recognize revenue in the amount in which it has the right to invoice if its right to consideration is equal to the value of its performance.

Service Contracts

For service contracts (including maintenance contracts) in which the Company has the right to consideration from the customer in an amount that corresponds directly with the value to the customer of the Company's performance completed to date, revenue is recognized when services are performed and contractually billable. For all other service contracts, the Company recognizes revenue over time using the cost-to-cost percentage-of-completion method.

The Company's timing of revenue recognition may not be consistent with its rights to bill and collect cash from its customers. Those rights are generally dependent on contract terms. The Company's contracts receivable represents amounts billed to customers that have yet to be collected and represent an unconditional right to cash from its customers. Contracts receivable are stated at the amount management expects to collect from balances outstanding at year-end. Based on management's assessment of the credit history with customers having outstanding balances and current relationships with them, it has concluded that realization losses on balances outstanding at year-end will be insignificant. Contract retainages represent amounts invoiced to customers where payment has been withheld by the customer until the work is completed and are included in contracts receivable.

Contract assets represent revenue recognized in excess of amounts billed and include unbilled receivables and contract work in progress. Unbilled receivables, which represent an unconditional right to payment subject only to the passage of time, are reclassified to accounts receivable when they are billed under the terms of the contract. Contract liabilities represent amounts billed to clients in excess of revenue recognized to date. The company anticipates that substantially all incurred cost associated with contract assets as of December 31, 2020 will be billed and collected within one year.

MNE's consumer products and entertainment businesses generally recognize revenue at a point-in-time when performance obligations are satisfied.

Inventories

Inventories consist of materials and supplies that have not been charged to specific jobs or contracts and are stated at the lower of cost or market.

Property and equipment

Property and equipment are recorded at cost. Maintenance and repairs are expensed as incurred. Management reviews the carrying amount of its property and equipment for impairment whenever events or changes in circumstances indicate that the carrying amount of an asset may not be recoverable. There were no indicators of impairment as of December 31, 2020. When property and equipment are sold or otherwise disposed of, the cost and related accumulated depreciation are removed from the accounts, and the resulting gain or losses are included in the statements of income. Depreciation expense is provided on a straight-line method over the estimated useful lives of the assets ranging from five to fifty years. Leasehold improvements are depreciated over the lesser of the

estimated useful life or the remaining lease term that considers renewal periods that are reasonably assured.

Long-lived asset impairment

MNE evaluates the recoverability of the carrying value of long-lived assets whenever events or circumstances indicate the carrying amount may not be recoverable. If a long-lived asset is tested for recoverability and the undiscounted estimated future cash flows expected to result from the use and eventual disposition of the asset is less than the carrying amount of the asset, the asset cost is adjusted to fair value and an impairment loss is recognized as the amount by which the carrying amount of a long-lived asset exceeds its fair value. No asset impairment was recognized during the year ended December 31, 2020.

SBA Paycheck Protection Program (PPP)

MNE has elected to account for the PPP loans under FASB ASC 470, which clarifies how a borrower should account for a forgivable loan received under the Small Business Administration Paycheck Protection Program. The proceeds for the loan were recorded as a liability until MNE received notification during the year that the loan was wholly forgiven and MNE has been "legally released." MNE then reduced the liability by the amount forgiven and recorded a gain on extinguishment of debt in the consolidated statement of operations.

Amortization

Other assets subject to amortization are amortized over their estimated useful lives. Deferred lease expenses are amortized over the term of the lease agreement.

Goodwill

Goodwill represents the excess of the purchase price of an acquired entity over the amounts assigned to assets acquired and liabilities assumed. Testing for goodwill impairment is performed on an annual basis. Goodwill was not impaired during the year ended December 31, 2020. See Note 4 for additional information on goodwill.

Advertising

Advertising costs are charged to expense as incurred. MNE incurred approximately $574,442 in advertising costs for the year ended December 31, 2020, which is included in operating expenses in the accompanying consolidated statement of operations.

Income taxes

MNE is a Tribal Corporation established under the Miami Nation Enterprises Act of 2004 and is therefore not subject to federal or state income taxes.

Recent accounting pronouncements

In February 2016, the FASB issued *ASU 2016-02 Leases*. *ASU 2016-02* requires recognition of the assets and liabilities that arise from leases. The new standard is effective for fiscal years beginning after December 15, 2021. MNE is currently evaluating the effect that implementation of the new standard will have on its financial position, results of operations, and cash flows.

The FASB issued *ASU 2016-13, Measurement of Credit Losses* on Financial Instruments, in June 2016. Its implementation will result in a new Accounts Receivable loss accounting framework, also known as the current expected credit loss (CECL) model. CECL requires credit losses expected throughout the life of the asset to be recorded at the time of origination. Under the current incurred loss model, losses are recorded when it is probable that a loss event has occurred. The ASU is effective for interim and annual periods beginning January 1, 2023. MNE is assessing the standard and is in the process of reviewing the capability of its systems and processes to support the data collection and retention required to implement the new standard.

2. Commitments and Contingencies

Operating leases

MNE leases a number of warehouses, buildings, factories, and office spaces under operating leases as reported under rent expense. The leases typically run for a period of 5-15 years, generally with options to renew the lease after that date.

Future minimum rental payments required as of December 31, 2020, in the aggregate and for each of the five succeeding fiscal years are as follows:

For the years ended December 31,	
2021	$ 2,422,425
2022	2,345,679
2023	2,037,179
2024	1,795,232
2025	1,761,039
Thereafter	7,570,125
	$ 17,931,679

Total rent expense under all operating leases for the year ended December 31, 2020, was approximately $2,630,519.

3. Property and equipment

A description of MNE's capitalization policy along with a general description of the method used in computing depreciation on each major class is disclosed in Note 1. Balances of major classes of depreciable assets, by nature or function, and accumulated depreciation as of December 31, 2020 is as reported in the Consolidated Balance Sheet. Depreciation expense for the year ended December 31, 2020 amounted to $5,816,285.

4. Goodwill

A summary of changes in the carrying amount of goodwill for the year ended December 31, 2020, is shown below:

Balance at January 1, 2020	$ 9,276,253
Addition of goodwill	1,101,828
Impairment of goodwill	-
Amortization of goodwill	(137,935)
Other adjustments	(132,841)
Balance at December 31, 2020	$ 10,107,305

The fair value of goodwill is tested for impairment annually. MNE has determined that there should be no impairment losses recognized during 2020. The fair value of subsidiaries was estimated using the expected present value of future cash flows.

Carnahan-White, LLC (wholly-owned subsidiaries) has adopted the accounting alternative for goodwill available to private companies under Financial Accounting Standards Board (FASB) Accounting Standards Codification (ASC) 350-20 – *Goodwill*. Accordingly, Carnahan-White amortizes goodwill on a straight-line basis. Amortization of goodwill amounted to $108,680 for the year ended December 31, 2020. Amortization of goodwill is expected to be $108,680 for 2021. Accumulated amortization as of December 31, 2020 is $483,766. No triggering events occurred during the year ended December 31, 2020 that required goodwill impairment testing on Carnahan-White's goodwill and, accordingly, no impairment loss was recorded in 2020.

Miami Nation Stronghold, LLC (wholly-owned subsidiary) has also adopted the accounting alternative for goodwill available to private companies under Financial Accounting Standards Board (FASB) Accounting Standards Codification (ASC) 350-20 – *Goodwill*. Accordingly, Miami Nation Stronghold amortizes goodwill on a straight-line basis. Amortization of goodwill amounted to $29,255 for the year ended December 31, 2020. Amortization of goodwill is expected to be $29,255 for 2021. Accumulated amortization as of December 31, 2020 is $96,026. No triggering events occurred during the year ended December 31, 2020 that required goodwill impairment testing on Miami Nation Stronghold's goodwill and, accordingly, no impairment loss was recorded in 2020.

During 2020, MNE sold their majority interest in Ohio Ambulance Solutions, LLC and OAS Health Care Ventures, LLC. At the time of sale, the subsidiaries had goodwill reported on the balance sheet of $71,838 and $61,000, respectively. This results in an other adjustment of $132,841.

5. Revolving lines-of-credit and long-term debt

MNE has a revolving line of credit (RLOC) for $3,000,000 with Native American Bank, N.A., secured by all business assets of Miami Technology Solutions, LLC. The RLOC matures on December 18, 2021 and bears interest at WSJ prime + 1.5% (6.25% as of December 31, 2020). The RLOC had no outstanding balance as of December 31, 2020.

TSI Global, LLC has a $4,000,000 revolving line-of-credit plus interest with Busey Bank, which matures September 30, 2021. Interest is charged on the outstanding balance at 2.30%, plus one-month Libor rate. This loan is collateralized by the assets of TSI Global, LLC. As of December 31, 2020, there was no outstanding balance. The line-of-credit agreement contains a covenant to maintain a

minimum amount of tangible net worth and was in compliance with this covenant as of December 31, 2020.

At December 31, 2020, long-term debt consisted of the following:

Note payable to Native American Bank, payable $48,797 monthly, prime plus 1.50% interest, due December 2028, secured by various company assets.	$ 3,532,571
Notes payable to Ally Financial, payable $1,111 monthly, 6.94% interest, secured by vehicles.	57,141
Notes payable to Bell Bank, payable monthly ranging from $494 to $4,363, including interest ranging from 5.90% to 6.50%, secured by equipment.	193,883
Note payable to Wells Fargo Equipment Finance, payable $1,086 monthly, including interest at 5.65%, secured by equipment.	19,688
Note payable to De Lage Landen Financial, payable $680 monthly, 4.89% interest, secured by equipment.	14,290
Notes payable to Ally Financial, payable monthly ranging from $1,031 to $1,299, interest ranging from 4.19% to 6.99%, secured by vehicles.	223,991
Notes payable to Ford Motor Credit, payable monthly ranging from $810 to $1,535, interest ranging from 0% to 6.94%, secured by equipment.	140,902
Note payable to GM Financial, payable $681 monthly, 5.99% interest, secured by vehicles.	53,686
Notes payable to John Deere Financial, payable monthly ranging from $1,572 to $14,496, interest ranging from 0% to 1.90%, secured by equipment.	3,332,713
Notes payable to Wells Fargo Bank, payable monthly ranging from $3,121 to $4,405 monthly, 4.88% interest, secured by equipment.	225,371
Notes payable to Komatsu Financial, payable monthly ranging from $1,391 to $32,465, 0% to 5.15% interest, secured by equipment.	2,780,372
Notes payable to Webster Capital, payable monthly ranging from $8,324 to $22,004, 1.95% to 2.95% interest, secured by equipment.	73,610
Capital lease with PNC Equipment Finance, payable $903 monthly, 5.29% interest, due October 2021, secured by equipment.	35,001
Total long-term debt	$ 10,683,219
Less current maturities	(3,606,164)
	$ 7,077,055

Future maturities of long-term debt are as follows:

2021	$ 3,606,164
2022	2,261,418
2023	1,728,237
2024	1,044,399
2025 and thereafter	2,043,001
	$ 10,683,219

6. SBA Paycheck Protection Program

The SBA Paycheck Protection Program (PPP) is a loan designed to provide a direct incentive for small businesses to keep their workers on payroll. The Small Business Administration will forgive the loan if all employee retention criteria are met, and the funds are used for eligible expenses. MNE expects all PPP loans to be forgiven.

During 2020, many of the MNE subsidiaries received PPP loans. These loans are payable at an interest rate of 1.00%, due in one installment in April 2022. At December 31, 2020, the PPP loans consist of the following:

Miami Business Services, LLC	$ 33,400
Šooli Entertainment	376,923
Miami Technology Solutions, LLC	699,800
Carnahan-White, LLC	429,000
Excel Utility Contractors, LLC	716,100
CK Contractors and Development, LLC	2,400,000
Nation's Cabinetry, LLC	4,174,900
Miami Environmental & Energy Solutions, LLC	62,400
Champion Commercial Fence Builders, LLC	98,700
Miami Wiipica, LLC	49,100
Miami Tribal Systems Integrators, LLC	114,600
Miami Nation Stronghold, LLC	90,800
Total long-term debt	$ 9,245,723
Less current maturities	-
	$ 9,245,723

TSI Global and MNE received PPP loans that were obtained and forgiven within 2020. After forgiveness was officially granted, these loans were removed from the consolidated balance sheet and reflected in gain on extinguishment of debt in the consolidated statement of operations. For the year ended December 31, 2020, TSI Global and MNE showed a gain on extinguishment of debt of $1,883,335 and $226,306, respectively.

7. Revenue from contracts with customers

Performance obligations

To determine the proper revenue recognition method, the Companies evaluate whether two or more contracts should be combined and accounted for as one single contract and whether the combined or single contract should be accounted for as more than one performance obligation. The majority of the Companies contracts have a single performance obligation as the promise to transfer the individual goods or services is not separately identifiable from other promises in the contracts and therefore, not distinct. The Companies may also promise to provide distinct services within a contract in which case the Companies separate the contract into multiple performance obligations. For contracts with multiple performance obligations, the Companies allocate the contract transaction price to each performance obligation using the best estimate of the standalone selling price of each distinct good or service in the contract.

Variable Consideration

Contract modifications are common in the performance of the Company's contracts. Contracts modified typically result from changes in scope, specifications, design, performance, or period of completion. In most cases, contract modifications are for services that are not distinct, and, therefore, are accounted for as a modification to the original contract price. The modification to the contract price is recorded to the extent it is probable that such change orders will result in additional contract revenue and the amount of such additional revenue can be reliably estimated.

Contract Costs

Direct costs of contracts include all costs incurred in connection with and directly for the benefit of client contracts. The level of direct costs of contracts may fluctuate between reporting periods due to a variety of factors, including the amount of pass-through costs incurred during a period. Contract costs include labor, subcontract costs, and other direct costs. Contract estimates are based on various assumptions to project the outcome of future events. These assumptions are dependent upon the accuracy of a variety of estimates, including engineering progress, achievement of milestones, labor productivity and cost estimates. Due to uncertainties inherent in the estimation process, it is possible that actual completion costs may vary from estimates. If estimated total costs on contracts indicate a loss or reduction to the percentage of total contract revenues recognized to date, these losses or reductions are recognized in the period in which the revisions are known. The effect of revisions to revenues, estimated costs to complete contracts, including penalties, incentive awards, change orders, claims, anticipated losses and others are recorded on the cumulative catchup basis in the period in which the revisions are identified and the loss can be reasonably estimated.

Disaggregation of revenue

At December 31, 2020, revenue, disaggregated by source and pattern of revenue recognition, consisted of the following:

Point-in-time	$ 68,167,239
Over time	
Cost reimbursable	6,394,705
Fixed price	157,646,334
Time and materials	7,000,581
Service	1,843,824
Total over time	$ 172,885,444
Total revenues	$ 241,052,683

The following activity represents the change in contract accounts for the year ended December 31, 2020:

	Beginning of year	End of year
Contracts receivable	$ 28,877,704	$ 25,624,684
Contracts receivable, retainage	5,396,049	6,128,375
Contract assets	5,996,499	2,879,627
Contract liabilities	7,699,108	5,063,253

8. Employee retirement plan

MNE companies sponsor various defined contribution 401(k) plans covering all eligible employees. Employees may contribute to the plan up to a maximum of $17,500 annually. Company contributions represent a partial matching of 2% to 5% of employee contributions. Contributions are invested at the direction of the employee in one or more funds. Company contributions charged to expense for the year ended December 31, 2020 were $511,630.

9. Related party transactions

Leases

Nations Cabinetry, LLC leases warehouse space from a related party. Total rent expense for the warehouse was approximately $270,600 during 2020. The original lease agreement for 18 months, ended June 30, 2018, and then renewed for another 18 months, ending December 31, 2020. The monthly rent is $22,500.

CK Contractors rents a storage area from non-controlling owners of the business. They incurred $42,000 of expense related to these leases during 2020. The storage lease is active through September 2021 and automatically renews three times every five years unless notice of intent not to renew is given.

Excel Utility Contractors rents its office and warehouse from an affiliated company. They incurred rent expense of $66,000 related to this lease during 2020. The lease is active through May of 2024 and automatically renews three times every five years unless notice of intent not to renew is given.

Other significant related party transactions

Payroll and payroll-related expenses of Šooli Entertainment are paid by MNE. Additionally, property and other shared expenses of the Enterprise are paid by MNE. As of December 31, 2020, Šooli Entertainment had a liability of $2,002,275 due to MNE for payroll and other expenses MNE paid on behalf of Šooli Entertainment.

The building and certain other capital assets used by Šooli Entertainment were not paid for by Šooli Entertainment. These assets had a cost basis of approximately $5,543,000 at December 31, 2020 and are not included in Šooli Entertainment's capital assets. These items are presented as capital assets of the Tribe. The Enterprise does not pay rent for the use of the aforementioned assets.

Excel Utility Contractors uses an affiliated company as a subcontractor. Excel paid this affiliated company $3,343,461 for work completed during the year ended December 31, 2020.

TSI Global had contractors, related through common ownership, perform contract services during 2020. Payments to the related entities for the services were $57,044 for the year ended December 31, 2020.

TSI Global performed contract services for two entities related through common ownership during 2020. Services performed for these entities totaled $173,211.

CK Contractors incurred management fees to a member of $619,698. This amount was included in professional fees.

Organizational changes

MNE signed an agreement to purchase the noncontrolling ownership in Nations Cabinetry, LLC from BJT Properties, Inc., effective December 31, 2020. The purchase price of $2,250,000 was advanced from Nations Cabinetry, LLC to MNE. Therefore, MNE has an intercompany payable due to Nations, which is expected to be paid in 2021. MNE reported an increase in goodwill of $1,101,828 on this transfer of interest. Nations Cabinetry is now a wholly-owned entity of MNE.

MNE signed an agreement to purchase the noncontrolling ownership in Champion Commercial Fence Builders, LLC, effective December 31, 2020. MNE agreed to assume and payoff the indebtedness of the Company in exchange for each noncontrolling owners' right, title and interest in the company. MNE reported a gain on purchase of $30,764 on this transfer of interest. Champion Commercial Fence received 8(a) certification during 2020.

Miami Nation Stronghold was previously reported within Carnahan-White as a wholly-owned subsidiary. In March 2020, Miami Nation Stronghold obtained certification under the U.S. Small Business Administration 8(a) Business Development Program and subsequently broke out into its own entity. The 8(a) Program provides business development assistance to companies owned by socially and economically disadvantages individuals, including Native American Tribes.

Wiipica and MTSI also received their 8(a) certification during 2020.

10. Discontinued operations

MNE ceased operations of White Loon Construction (White Loon), a wholly-owned subsidiary, on April 7, 2017. White Loon was still winding down operations and liquidating assets as of December 31, 2020. As is presented in the consolidated financial statements, for the year ended December 31, 2020, revenue was $629 and net income was $13,412. Total assets for White Loon were $260,714 as of December 31, 2020.

MNE signed an agreement to sell 100% of the assets of Miami Cineplex to B&B Movie Theatres, LLC effective March 5, 2020. The purchase price was $300,000, payable $200,000 at closing and $100,000 in accordance with the terms and conditions set forth in a Promissory Note to MNE. MNE reported a loss on disposal of $518,592 on the transfer of interest. Subsequently, MNE reported a loss of $100,000 on the reserve of the note receivable from B&B Theatres, LLC due to the uncertainty of the economy, and specifically the theater industry, during the COVID-19 pandemic. As is presented in the consolidated financial statements, for the year ended December 31, 2020, revenue was $104,559 and net loss was $648,049. Miami Cineplex reported no assets on the books as of December 31, 2020, and the Miami Cineplex will not be a related party after deconsolidation.

MNE signed an agreement to sell majority ownership in Ohio Ambulance Solutions, LLC to Destination Healthcare, LLC effective October 31, 2020. The purchase price was $1,444,255, payable $300,000 at closing with the remaining due in accordance with the terms and conditions set forth in a Promissory Note to MNE. MNE reported a loss on disposal of $367,773 on this transfer of interest, which is recorded in the loss on sale of components line item in the consolidated statement of operations. Ohio Ambulance Solutions is not a related party after deconsolidation.

MNE signed an agreement to sell majority ownership in OAS Health Care Ventures, LLC to Destination Healthcare, LLC effective October 31, 2020. The purchase price was $100,000, payable in accordance with the terms and conditions set forth in a Promissory Note to MNE. MNE reported a gain on disposal of $390,576 on this transfer of interest, which is recorded in the loss on sale of components line item in the consolidated statement of operations. OAS Health Care Ventures is not a related party after deconsolidation.

11. Contingencies

Certain conditions may exist as of the date the financial statements are issued, which may result in a loss to MNE, but which will only be resolved when one or more future events occur or fail to occur. The Company's management and its legal counsel assess such contingent liabilities, and such assessment inherently involves an exercise of judgment. In assessing loss contingencies related to legal proceedings that are pending against the Company or unasserted claims that may result in such proceedings, the Company's legal counsel evaluates the perceived merits of any legal proceedings or unasserted claims as well as the perceived merits of the amount of relief sought or expected to be sought therein.

If the assessment of a contingency indicates that it is probable that a material loss has been incurred and the amount of the liability can be estimated, then the estimated liability would be accrued in the Company's financial statements. If the assessment indicates that a potentially material loss contingency is not probable, but is reasonably possible, or is probable but cannot be estimated, then the nature of the contingent liability, together with an estimate of the range of possible loss if determinable and material, would be disclosed.

Loss contingencies considered remote are generally not disclosed unless they involve guarantees, in which case the nature of the guarantee would be disclosed.

Some of the companies whose financial statements are included in the accompanying consolidated financial statements are involved in litigation arising in the ordinary course of business. MNE's management estimates these matters will be resolved without having a material adverse effect on MNE's financial position or results of operations.

12. Uncertainties

The extent of the operational and financial impact the COVID-19 pandemic may have on MNE has yet to be determined and is dependent on its duration and spread, any related operational restrictions and the overall economy. MNE is unable to accurately predict how COVID-19 will affect the results of its operations because the virus's severity and the duration of the pandemic is uncertain.

13. Subsequent events

In preparing these financial statements, MNE has evaluated events and transactions for potential recognition or disclosure through May 28, 2021, the date the consolidated financial statements were available to be issued.

On December 27, 2020, the Consolidated Appropriations Act was signed into law. The legislation includes provisions for expansion of the U.S. Small Business Administration's 7(a) Loan Program to support the new Paycheck Protection Program ("PPP"). Loans made under the PPP can be forgiven if certain conditions are met. TSI Global, LLC submitted an application and was awarded a loan in the amount of $2,000,000 under the PPP on February 19, 2021. On February 16, 2021, Šooli Entertainment secured a second-round PPP loan in an aggregate principal amount of $341,175. On March 31, 2021, Champion Commercial Fence secured a second-round PPP loan in an aggregate principal amount of $98,743. MNE believes all three loans will meet the required forgiveness criteria for the second PPP loan and expects to receive full forgiveness.

Miami Nation Enterprises has distributed $4,059,110 to the Miami Tribe of Oklahoma as of May 28, 2021.

Šooli Entertainment has distributed $1,007,036 to the Miami Tribe of Oklahoma as of May 28, 2021.

Effective April 1, 2021, MNE established a partially self-funded health insurance program. A reserve fund of $1,250,000 was established in a dedicated bank account at commencement of the plan. Each component company pays monthly premium checks to MNE for deposit into the self-funded insurance account. If claims and broker fees exceed monthly premiums, a liability will be recorded, which will result in future premium increases for the component companies. As of May 28, 2021, the balance in the related bank account was $2,039,349.

SUPPLEMENTARY INFORMATION

MIAMI NATION ENTERPRISES

SCHEDULE OF OPERATING EXPENSES
Year ended December 31, 2020

Operating expenses:	
Salaries & wages	$ 17,340,802
Employee benefits	2,567,515
Other	1,865,580
Payroll taxes	1,241,088
Rent	1,212,691
Contract labor	1,035,267
Legal & professional	1,016,485
Depreciation	867,611
Marketing	574,442
Supplies	573,938
Insurance	472,632
Tech support	468,161
Maintenance & equipment	459,279
Utilities	423,190
Bad debt	385,895
Travel & living	368,090
Telephone	246,638
Taxes, licenses & permits	237,090
Dues & subscriptions	192,353
Consulting	182,904
Auto	142,466
Training	98,694
Workers comp	78,066
Bank charges	58,242
Postage & freight	38,750
Overhead	34,744
Donations	21,057
Meals & entertainment	9,566
Security	9,270
Total operating expenses	$ 32,222,506

See Independent Auditor's Report.

1.9 Facilities and Equipment

Miami Wiipica, LLC has a Bona Fide facility at the following location:

250 West Park Street, Suite 100
Providence, RI 02908.

This facility will serve all construction operations for the mid-atlantic provision for all supplies, materials, tools, equipment and personnel for all projects Miami Wiipica is awarded under this MACC.

U.S. Small Business Administration

DCrecert8a@sba.gov | 202-205-8800 | www.sba.gov/dc
Washington Metropolitan Area District Office (WMADO) | 409 3rd St SW, Floor 2 | Washington, DC 20416

May 13, 2021

Mr. Harry Brown
Miami Wiipica LLC
1950 Roland Clarke PL STE 210E
Reston, VA 20191-1414

Dear Mr. Brown:

This is letter serves to inform you that as a result of a site visit made by the Rhone Island SBA District Office on May 6,2021 to the branch office of Miami Wiipica, LLC- located at 250 West Park Street, Suite 100, Providence, RI, 02908– Miami Wiipica, LLC has been certified as a Bona Fide Office within the geographical boundaries served by that office.

Based on the reviewing of the documents, the branch office meets the criteria and due to Covid-19 pandemic, our office is not able to do a physical visit. Miami Wiipica,LLC meets the requirements as a bona fide place of business in accordance with the regulations which govern competitive 8(a) construction awards.

If there are any changes that could affect the bona fide place of business status, please notify the Washington Metropolitan Area District Office immediately.

Sincerely,

PAMELA MANNION
Digitally signed by PAMELA MANNION
Date: 2021.05.12 11:24:47 -04'00'

Pamela Mannion
Supervisory Business Opportunity Specialist

1.10 Offerors Current Workload

The current workload for Miami Wiipica, LLC, at the time this proposal is submitted for evaluation, includes the following projects:

FA286021D0018	JB Andrews & JB Anacostia Bollin AFB MACC
W9123621D2034	Single Phase Design-Bid-Build Multiple Award Task Order Contract (MATOC) - ANC Future Roads MACC
70BOIC21C00000051	Customs Border Protection - Laredo Check Point 29 Life and Safety Renovations.
FA481920C0014	Tyndall AFB Modular Unit - MODULAR ADMINISTRATIVE FACILITES - Task Orders 01/02/03
FA481920C0047	Tyndall AFB Modular Unit - MODULAR ADMINISTRATIVE FACILITES - Task Orders 04 & 07
FA481920C0054	Tyndall AFB Modular Unit - MODULAR ADMINISTRATIVE FACILITES - Task Orders 06, 13 & 15
FA481920C0053	Tyndall AFB Modular Unit - MODULAR ADMINISTRATIVE FACILITES - WEG Vaults